

72nd BPSC PRELIMS

प्रहार

Test Series

Test-15

POLITY

Solution

English



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BPSC TEST-15 (SOLUTION)

Q 1. Ans. B

Explanation:

- Part II of the Constitution (Articles 5 to 11) deals with citizenship. However, it only identifies the persons who became citizens of India at the commencement of the Constitution on January 26, 1950. It does not deal with the problem of acquisition or loss of citizenship subsequent to its commencement. That power has been left to Parliament under Article 11, which enables it to make any provision with respect to the acquisition and termination of citizenship.
- Accordingly, Parliament enacted the Citizenship Act, 1955, which provides for the acquisition and loss of citizenship after the commencement of the Constitution.
- The Constitution does not define the term 'citizen' but deals with different classes of persons who are entitled to citizenship at its commencement.
- India has single citizenship, i.e., all citizens owe allegiance to the Union. There is no separate state citizenship, unlike the USA, which has dual citizenship, one of the nation and one of the state.
- The six articles under Part II and the citizenship they confer are as follows:
 - ✓ Article 5: Citizenship by domicile, persons born in India, or whose parents were born in India, or who had been ordinarily resident in India for 5 years prior to commencement
 - ✓ Article 6: Rights of citizenship of certain persons who migrated from Pakistan to India
 - ✓ Article 7: Rights of citizenship of certain persons who migrated to Pakistan but later returned on resettlement permits
 - ✓ Article 8: Rights of citizenship of persons of Indian origin residing outside India, they could register with the diplomatic/consular representative of India
 - ✓ Article 9: Persons who have voluntarily acquired the citizenship of a foreign state shall not be citizens of India
 - ✓ Article 10: Continuance of rights of citizenship, every citizen shall continue to be so, subject to any law made by Parliament
 - ✓ Article 11: Empowers Parliament to make laws on the acquisition and termination of citizenship

Q 2. Ans. A

Explanation:

- **Statement 1 is correct:** Zero Hour is indeed an Indian innovation in the field of parliamentary procedures and has been in existence since 1962. The time immediately following the Question Hour is referred to as Zero Hour. It starts at 12 noon (and hence the name) and lasts until the agenda for the day (i.e., regular business of the House) is taken up. During this time, members can raise matters of urgent public importance without any prior notice.
- **Statement 2 is incorrect:** Zero Hour is not mentioned in the Rules of Procedure of either House of Parliament. It is not a formally recognised part of parliamentary procedure, unlike the Question Hour. It has evolved as a parliamentary convention over the decades and has no constitutional or procedural basis in the rule books.
- The Question Hour is the first hour of every parliamentary sitting (from 11 AM to 12 noon) and is explicitly governed by the Rules of Procedure. During Question Hour, members ask questions and ministers are obligated to answer them. Questions can be Starred, Unstarred, or Short Notice Questions.
- While Zero Hour allows members to raise urgent and important public matters, it differs from the Special Mention procedure (in Rajya Sabha) and Calling Attention Motion, which are formally recognised procedures with specific rules governing them.
- The significance of Zero Hour lies in the fact that it gives members an opportunity to draw the attention of the government to immediate issues of national and public importance that cannot wait for the regular procedural routes.

Q 3. Ans. C

Explanation:

- **Assertion (A) is correct:** As per the Rules of Procedure of the Lok Sabha, a No-Confidence Motion does not need to state the reasons for its adoption. It requires the support of at least 50 members to be admitted for discussion.
- **Reason (R) is incorrect:** A No-Confidence Motion can only be moved against the entire Council of Ministers, not against an individual minister or a

group of ministers. If the motion is passed in the Lok Sabha, the entire Council of Ministers, including the Prime Minister, must resign from office.

- The motion that can be moved against an individual minister or a group of ministers is the Censure Motion. A Censure Motion, unlike a No-Confidence Motion, must state the reasons for its adoption. Also, if a Censure Motion is passed, the government is not obligated to resign, though it is regarded as a political setback.
- A No-Confidence Motion can be introduced only in the Lok Sabha and not in the Rajya Sabha, since the Council of Ministers is collectively responsible only to the Lok Sabha under Article 75 of the Constitution.

Q 4. Ans. C

Explanation:

- **Pair 1 is correctly matched:** An Ordinary Bill can be introduced in either House of Parliament and by either a minister or a private member. It does not require the prior recommendation or permission of the President for its introduction.

- **Pair 2 is correctly matched:** A Money Bill (under Article 110) can be introduced only in the Lok Sabha and only by a minister, and that too only on the recommendation of the President. A private member cannot introduce a Money Bill.
- **Pair 3 is correctly matched:** A Financial Bill (Category I) under Article 117(1) contains provisions dealing with matters specified in Article 110 (Money Bill matters) as well as other matters. Like a Money Bill, it can be introduced only in the Lok Sabha and not in the Rajya Sabha, and only on the recommendation of the President.
- **Pair 4 is incorrectly matched:** A Constitutional Amendment Bill under Article 368 does not require the prior recommendation of the President for its introduction. It can be introduced in either House of Parliament by a minister or a private member. The President's role comes only at the stage of assent, and notably, the President cannot withhold assent to a Constitutional Amendment Bill (as held in the Kesavananda Bharati case and later confirmed by the 24th Constitutional Amendment Act, 1971).

Bill Type	Introduced in	By whom	President's Recommendation Required
Ordinary Bill	Either House	Minister or Private Member	No
Money Bill	Only Lok Sabha	Only Minister	Yes
Financial Bill (I)	Only Lok Sabha	Only Minister	Yes
Financial Bill (II)	Either House	Only Minister	No (but needed at grant stage)
Constitutional Amendment Bill	Either House	Minister or Private Member	No

Q 5. Ans. B

Explanation:

- Out of all Union Territories, only three have representation in the Rajya Sabha:
 - ✓ Delhi
 - ✓ Puducherry
 - ✓ Jammu & Kashmir (retained its Rajya Sabha seats even after being reorganised into a UT in 2019)
- Ladakh, though carved out of J&K as a separate UT in 2019, does not have Rajya Sabha representation because its population is too small to justify a seat.
- The remaining UTs, Chandigarh, Dadra & Nagar Haveli and Daman & Diu, Lakshadweep, and Andaman & Nicobar Islands, also have no Rajya Sabha representation for the same reason.

Q 6. Ans. B

Explanation:

- **Assertion (A) is correct:** Under Article 75(2) of the Constitution, a minister shall hold office during the pleasure of the President. This establishes the principle of individual responsibility of ministers, meaning each minister can be removed independently without the entire Council of Ministers having to resign.
- **Reason (R) is correct:** Although Article 75(2) formally vests the power of removal in the President, the President does not exercise this power independently. The President removes a minister only when advised to do so by the Prime Minister. The Prime Minister can recommend the removal of any minister, and the President is bound to act on that advice.

- **(R) is not the correct explanation of (A):** Assertion (A) establishes the constitutional principle that ministers are individually accountable and removable, which is a feature of the parliamentary system where the executive remains accountable to the legislature. Reason (R) merely describes the procedural mechanism through which the President's pleasure is exercised, i.e., on the advice of the Prime Minister. It does not explain why ministers hold office at the President's pleasure in the first place. Thus, (R) is only a procedural limitation on (A), not its foundational explanation.
- It is also important to distinguish individual responsibility under Article 75(2) from collective responsibility under Article 75(3). Collective responsibility means the entire Council of Ministers is responsible to the Lok Sabha as a body and must resign if a No-Confidence Motion is passed. Individual responsibility means a single minister can be removed by the President on the advice of the Prime Minister, without affecting the rest of the cabinet.

Q 7. Ans. B

Explanation:

- Article 65 of the Constitution provides that when a vacancy occurs in the office of the President due to death, resignation, removal, or otherwise, the Vice-President acts as the President until a new President is elected and enters office.
- Article 62(2) mandates that when a vacancy arises in the office of the President otherwise than by the expiration of the term, a new President must be elected within six months of the occurrence of the vacancy. Therefore, the Vice-President can act as President for a maximum period of six months.
- The Vice-President, while acting as President, does not perform the duties of the Vice-President simultaneously. During this period, the Chairman of the Rajya Sabha (which is the Vice-President's constitutional role) is discharged by the Deputy Chairman of the Rajya Sabha.
- It is important to distinguish between the two situations under Article 65:
 - ✓ Article 65(1): When the President is unable to discharge functions due to absence, illness, or any other cause, the Vice-President discharges the President's functions temporarily. Here, no vacancy has occurred.
 - ✓ Article 65(2): When an actual vacancy has occurred, the Vice-President acts as President

until the new President assumes office, subject to the six-month limit imposed by Article 62(2).

- When the Vice-President acts as President, he enjoys all the powers, immunities, and emoluments of the President and not of the Vice-President.

Q 8. Ans. D

Explanation:

- **Pair 1 is correctly matched:** Article 74 is titled "Council of Ministers to aid and advise the President." It provides that there shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President, and the President shall act in accordance with such advice. The President may require the Council to reconsider such advice, but is bound to act on the advice tendered after reconsideration.
- **Pair 2 is correctly matched:** Article 75 is titled "Other provisions as to Ministers." It covers the appointment of the Prime Minister by the President, the appointment of other ministers on the advice of the Prime Minister, the collective responsibility of the Council of Ministers to the Lok Sabha, the condition that a minister must be a member of Parliament within six months, and that ministers hold office during the pleasure of the President.
- **Pair 3 is correctly matched:** Article 78 is titled "Duties of Prime Minister as respects the furnishing of information to the President." It lays down three duties of the Prime Minister:
 - ✓ To communicate to the President all decisions of the Council of Ministers relating to the administration of the Union and proposals for legislation.
 - ✓ To furnish such information relating to the administration of the Union as the President may call for.
 - ✓ To submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a minister individually but which has not been considered by the Council, if the President so requires.
- **Pair 4 is correctly matched:** Article 88 is titled "Rights of Ministers and the Attorney-General as respects Houses." Article 88 provides that every minister and the Attorney-General of India shall have the right to speak in and otherwise take part in the proceedings of either House, any joint sitting, and any committee of Parliament of which they are a member, but shall not be entitled to vote.

Q 9. Ans. B

Explanation:

- **Assertion (A) is correct:** Article 14 embodies the concept of Rule of Law, which is the cornerstone of the Indian democratic system. The Supreme Court has held that the Rule of Law as embodied in Article 14 is a basic feature of the Constitution and therefore cannot be abrogated or destroyed even by a constitutional amendment.
- **Reason (R) is correct:** Article 14 forbids class legislation but permits reasonable classification of persons, objects, and transactions by the law. Such classification must satisfy two conditions:
 - ✓ The classification must be founded on an intelligible differentia, meaning a real and substantial distinction must exist between those grouped together and those left out.
 - ✓ The differentia must have a rational relation to the object sought to be achieved by the law in question.
- **(R) is not the correct explanation of (A):** The Rule of Law being a basic feature of the Constitution is a conclusion drawn from judicial interpretation, particularly through Supreme Court rulings. The doctrine of reasonable classification under Article 14 is a separate and independent principle that qualifies the guarantee of equality. It explains what Article 14 permits, but does not explain why the Rule of Law is elevated to the status of a basic feature of the Constitution. The two are distinct aspects of Article 14 and one does not flow from the other.

Q 10. Ans. B

Explanation:

- **Article 14:** Equality before the law (3): Article 14 guarantees equality before the law and equal protection of the laws to all persons within the territory of India. The concept of equality before law is of British origin, while equal protection of laws is taken from the American Constitution.
- **Article 15:** Prohibition of discrimination on certain grounds (4): Article 15 prohibits discrimination against any citizen on the grounds of religion, race, caste, sex, or place of birth only. It is important to note that Article 15 is available only to citizens, unlike Article 14, which is available to all persons, including foreigners.
- **Article 16:** Equality of opportunity in public employment (2): Article 16 guarantees equality of opportunity to all citizens in matters relating to

employment or appointment to any office under the State. It also permits Parliament to prescribe residence as a condition for certain employment or appointment in a particular state.

- **Article 17:** Abolition of Untouchability (1): Article 17 abolishes untouchability and forbids its practice in any form. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law. Parliament enacted the Protection of Civil Rights Act, 1955, to give effect to this article.

Q 11. Ans. A

Explanation:

- **Statement 1 is correct:** The Legislative Council has a Chairman and a Deputy Chairman. Both are elected by the members of the Legislative Council from amongst themselves. This is similar to the Lok Sabha, where the Speaker and Deputy Speaker are elected by the members of the House from amongst themselves.
- **Statement 2 is incorrect:** The salaries and allowances of the Chairman and Deputy Chairman of the Legislative Council are determined by the State Legislature, not by the Governor. They are charged to the Consolidated Fund of the State and are therefore not subject to the vote of the State Legislature.
- The Chairman of the Legislative Council can be removed from office by a resolution passed by a majority of all the then members of the Legislative Council. However, a resolution for his removal cannot be moved unless at least 14 days' notice has been given of the intention to move such a resolution.
- During the pendency of a resolution for the removal of the Chairman, he cannot preside over the sitting of the House, though he may be present. In such a case, the Deputy Chairman presides over the House.
- The Chairman vacates his office in the following three situations:
 - ✓ If he ceases to be a member of the Legislative Council.
 - ✓ If he resigns by writing to the Deputy Chairman.
 - ✓ If he is removed by a resolution of the Legislative Council.
- As of now, only 6 states in India have a Legislative Council. These are:
 - ✓ Andhra Pradesh
 - ✓ Telangana

- ✓ Uttar Pradesh
- ✓ Bihar
- ✓ Maharashtra
- ✓ Karnataka

Q 12. Ans. C

Explanation:

- **Statement 1 is correct:** Under Article 161 of the Constitution, the Governor has the power to grant pardons, reprieves, respites, and remissions of punishment, or to suspend, remit, or commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the state extends. This means the Governor's pardoning power is confined to sentences inflicted under state laws.
- **Statement 2 is incorrect:** The Governor cannot pardon a death sentence, even if it is awarded under a state law. This is one of the key differences between the pardoning powers of the President and the Governor. Only the President can pardon a death sentence under Article 72. However, the Governor can suspend, remit, or commute a death sentence awarded under a state law, but cannot pardon it outright.
- **Statement 3 is correct:** The Governor cannot pardon sentences inflicted by a court-martial (military court). This is the second key difference between the pardoning powers of the President and the Governor. The President alone has the power to pardon sentences inflicted by court-martial under Article 72.
- The two key differences between the pardoning powers of the President (Article 72) and the Governor (Article 161) are:
 - ✓ The President can pardon sentences inflicted by a court-martial, the Governor cannot.
 - ✓ The President can pardon a death sentence, the Governor cannot, even if the death sentence is awarded under a state law.
- The forms of the Governor's pardoning power are:
 - ✓ Pardon: Removes both the sentence and the conviction completely.
 - ✓ Commutation: Substitutes one form of punishment for a lighter form.
 - ✓ Remission: Reduces the period of the sentence without changing its character.
 - ✓ Respite: Awards a lesser sentence on special grounds such as pregnancy.
 - ✓ Reprieve: Stays the execution of a sentence temporarily.

Q 13. Ans. D

Explanation:

- **Pair 1 is correctly matched:** Article 51A(a) reads: "To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem."
- **Pair 2 is correctly matched:** Article 51A(g) reads: "To protect and improve the natural environment, including forests, lakes, rivers and wildlife, and to have compassion for living creatures."
- **Pair 3 is correctly matched:** Article 51A(i) reads: "To safeguard public property and to abjure violence."
- **Pair 4 is correctly matched:** Article 51A(h) reads: "To develop the scientific temper, humanism and the spirit of inquiry and reform."
- All other Fundamental Duties under Article 51A are:
 - ✓ 51A(b): To cherish and follow the noble ideals of the national struggle for freedom.
 - ✓ 51A(c): To uphold and protect the sovereignty, unity and integrity of India.
 - ✓ 51A(d): To defend the country and render national service when called upon.
 - ✓ 51A(e): To promote harmony and the spirit of common brotherhood and to renounce practices derogatory to the dignity of women.
 - ✓ 51A(f): To value and preserve the rich heritage of our composite culture.
 - ✓ 51A(j): To strive towards excellence in all spheres of individual and collective activity.
 - ✓ 51A(k): To provide opportunities for education to children between 6 and 14 years of age (added by the 86th Amendment Act, 2002).

Q 14. Ans. A

Explanation:

- **Statement 1 is correct:** The Committee on Subordinate Legislation scrutinises and reports to the House whether the powers to make regulations, rules, sub-rules, by-laws, etc., conferred by the Constitution or **delegated by Parliament to the executive**, are being properly exercised within the scope of such delegation. It thus acts as a check on the rule-making powers of the executive.
- **Statement 2 is correct:** Both the **Lok Sabha** and the **Rajya Sabha** have their own separate Committee on Subordinate Legislation. Each committee consists of **15 members**.
- **Statement 3 is incorrect:** **Ministers are not appointed** to the Committee on Subordinate

Legislation. This is a deliberate provision to ensure that the committee functions independently and is not influenced by the executive, whose delegated legislation it is tasked with scrutinising. This disqualification of ministers also applies to certain other parliamentary committees, such as the **Public Accounts Committee** and the **Estimates Committee**.

- Subordinate legislation refers to rules, regulations, by-laws, and orders made by the executive under the authority delegated to it by Parliament through an Act. Since Parliament cannot legislate on every detail of every matter, it delegates this power to the executive, and the Committee on Subordinate Legislation ensures this delegated power is not exceeded or misused.

Q 15. Ans. B

Explanation:

- A **Starred Question** is one to which a member desires an **oral answer** in the House. It is distinguished by an **asterisk mark**, hence the name. A supplementary question can also be asked on a starred question.
- The maximum number of starred questions admitted for oral answers on a single day is **20**. However, in practice, only **3 to 4 starred questions** are actually answered orally in the House due to the time constraints of the Question Hour, which lasts only **one hour** (from 11 AM to 12 noon).
- Questions that are not reached during the Question Hour are treated as **unstarred questions**, and their answers are placed on the table of the House.
- An **Unstarred Question** requires a **written answer** and therefore no supplementary question can be asked on it. The maximum number of unstarred questions admitted on a single day is **230**.
- A **Short Notice Question** is one that is asked with a notice period of **less than 10 days**. The minimum notice period for an ordinary question is **10 days**.
- A member can ask a question to a **minister** only. Questions addressed to **private members** are also allowed, but only if the subject matter of the question relates to a Bill, Resolution, or any other matter connected with the business of the House for which that private member is responsible.

Q 16. Ans. C

Explanation:

- The **Speaker of the Lok Sabha** is the **ex officio President** of the **Indian Parliamentary Group (IPG)**.

- The **Indian Parliamentary Group** was **established in 1949** and functions as an **autonomous body** that serves as a link between the **Parliament of India** and the various **parliaments of the world**. It facilitates inter-parliamentary relations and promotes contacts between members of the Indian Parliament and members of foreign parliaments.
- The **ex officio Vice-Presidents** of the IPG are:
 - ✓ The Deputy Speaker of the Lok Sabha
 - ✓ The Chairman of the Rajya Sabha
 - ✓ The Deputy Chairman of the Rajya Sabha
- The IPG represents India in the **Inter-Parliamentary Union (IPU)**, which is the international organisation of parliaments of sovereign states. It also maintains relations with the **Commonwealth Parliamentary Association (CPA)**.
- Membership of the IPG is open to all members of both Houses of Parliament, i.e., the Lok Sabha and the Rajya Sabha. It is headquartered in **Parliament House, New Delhi**.

Q 17. Ans. C

Explanation:

- **Pair 1 is correctly matched:** The privilege of freedom from arrest applies **only in civil cases**. Members of Parliament cannot be arrested in civil cases during the session of Parliament and during the protected period before and after a session. However, this privilege does **not** extend to **criminal cases** or cases involving **preventive detention**. An arrest in a criminal case does not amount to a breach of privilege.
- **Pair 2 is incorrectly matched:** The duration of immunity from arrest is **40 days** before and after a session, not 60 days. This means a member of Parliament cannot be arrested in a civil case from 40 days before the commencement of a session to 40 days after its conclusion, in addition to the duration of the session itself.
- **Pair 3 is correctly matched:** Under **Article 105(2)** of the Constitution, no member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof. This constitutes an **absolute immunity** from court proceedings for anything said inside Parliament. However, this does not mean members are free from the disciplinary jurisdiction of the House itself.
- **Pair 4 is correctly matched:** Each House of Parliament has the right to **exclude strangers** from

its proceedings and hold **secret sittings**. A stranger is any person who is not a member of the House. This privilege ensures that the House can deliberate freely on sensitive matters without outside interference.

- Parliamentary privileges can be classified into two broad categories:
 - ✓ Privileges that belong to **each House collectively**, such as the right to publish debates, the right to exclude strangers, and the right to punish for contempt.
 - ✓ Privileges that belong to **individual members**, such as freedom from arrest, freedom of speech, and exemption from jury duty.

Q 18. Ans. C

Explanation:

- Under the Citizenship Act of 1955, citizenship of India can be **lost** in three ways: **Renunciation, Termination, and Deprivation**. Among these, **Deprivation** is the only method by which the **Government of India** can compulsorily terminate a person's citizenship. The other two involve either a voluntary act by the citizen or an automatic operation of law.
- **Deprivation** is the compulsory termination of citizenship by the **Central Government**. The Central Government can deprive a person of their citizenship on any of the following grounds:
 - ✓ The citizenship was obtained by **fraud, false representation, or concealment** of material facts.
 - ✓ The citizen has shown **disloyalty or disaffection** to the Constitution of India.
 - ✓ The citizen has, during a **war**, unlawfully traded or communicated with the enemy.
 - ✓ The citizen has, within **five years** of registration or naturalisation, been sentenced to imprisonment for **two years or more** in any country.
 - ✓ The citizen has been **ordinarily resident outside India** for seven years continuously.
- **Renunciation** is a **voluntary act** by a citizen. Any citizen of India who is also a national of another country can renounce their Indian citizenship by making a declaration to that effect. Upon registration of such a declaration, that person ceases to be a citizen of India. It is important to note that if such a declaration is made during a **war**, it shall not be registered except with the permission of the Central Government.

● Methods of acquiring citizenship:

- ✓ **Registration** is one of the five methods of acquiring citizenship under the Citizenship Act, 1955.
- ✓ **Descent** is another method of acquiring citizenship, available to persons born outside India on or after January 26, 1950, if their father was a citizen of India at the time of their birth.
- ✓ The five methods of **acquiring** citizenship under the Citizenship Act, 1955 are: **Birth, Descent, Registration, Naturalisation, and Incorporation of Territory**.

Q 19. Ans. D

Explanation:

- **Article 12** defines the term "State" for the purposes of **Part III (Fundamental Rights)**. It includes:
 - The Government and Parliament of India.
 - The Government and Legislature of each State.
 - All **local authorities**, such as municipalities, panchayats, district boards, and improvement trusts.
 - All **other authorities** within the territory of India or under the control of the Government of India.
- The expression "**other authorities**" under Article 12 has been interpreted very broadly by the Supreme Court through various judgments. The Court has laid down tests to determine whether a body qualifies as "State," which include:
 - ✓ Whether the body is created by a **statute**.
 - ✓ Whether the government has **deep and pervasive control** over the body.
 - ✓ Whether the body performs functions of **public importance**.
 - ✓ Whether the body is **financially dependent** on the government.
 - ✓ Whether the body enjoys a **monopoly status** conferred by the State.
- **LIC, ONGC, and SAIL** are all statutory corporations or government companies that have been held to be "State" under Article 12 by the Supreme Court, as they satisfy the above tests. They were held to be "State" in the landmark cases of **Sukhdev Singh v. Bhagatram (1975)** and subsequent judgments.
- A **private agency working as an instrument of the State** can also be considered "State" under Article 12. The Supreme Court in **Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (2002)** held that even a private body can be treated as "State" if it is **functionally, financially, and administratively**

dominated by the Government and is acting as its instrument or agency.

- The significance of a body being declared “State” under Article 12 is that it becomes **bound by Fundamental Rights**, and citizens can directly enforce their Fundamental Rights against such bodies by approaching the courts under **Articles 32 and 226**.

Q 20. Ans. B

Explanation:

- **Statement 1 is correct:** In the **Minerva Mills case (1980)**, the Supreme Court held that the **harmony and balance between Fundamental Rights and Directive Principles** is a **basic feature of the Constitution** and therefore cannot be destroyed even by a constitutional amendment. The Court struck down the extension of Article 31C made by the 42nd Amendment on this ground, restoring the original balance between Part III and Part IV.
- **Statement 2 is correct:** The **42nd Constitutional Amendment Act, 1976**, extended the scope of Article 31C to cover **all Directive Principles**, meaning any law giving effect to any DPSP would be protected from challenge under Articles 14 and 19. This effectively gave Directive Principles primacy over these two Fundamental Rights. However, this extension was subsequently **struck down** by the Supreme Court in the **Minerva Mills case (1980)**, which restored Article 31C to its pre-42nd Amendment position.
- **Statement 3 is incorrect:** Article 31C, as **originally enacted** by the **25th Constitutional Amendment Act, 1971**, protected only laws giving effect to the Directive Principles contained in **Articles 39(b) and 39(c)** from challenge under Articles 14 and 19. It was the **42nd Amendment** that extended this protection to all Directive Principles. The original Article 31C did not cover all Directive Principles.
- **Statement 4 is correct:** In the **Kesavananda Bharati case (1973)**, the Supreme Court upheld Article 31C but only to the extent it protected laws related to **Articles 39(b) and 39(c)**. The Court also struck down the provision in Article 31C that made such laws immune from judicial review, thereby preserving the power of courts to examine whether a law in question truly gave effect to Articles 39(b) and (c).
- The chronological evolution of the conflict between Fundamental Rights and DPSPs:
 - ✓ **25th Amendment (1971):** Article 31C inserted,

protecting laws under Articles 39(b) and (c) from Articles 14 and 19.

- ✓ **Kesavananda Bharati (1973):** Upheld Article 31C only for Articles 39(b) and (c); struck down immunity from judicial review.
- ✓ **42nd Amendment (1976):** Extended Article 31C to all DPSPs.
- ✓ **Minerva Mills (1980):** Struck down the 42nd Amendment extension; restored Article 31C to its original scope of Articles 39(b) and (c); declared harmony between Fundamental Rights and DPSPs a basic feature.

Q 21. Ans. A

Explanation:

- **Statement 1 is correct:** A person cannot be a member of **both Houses of Parliament** simultaneously. If a person is elected to both Houses, they must choose which House they wish to sit in, and the seat in the other House falls vacant. This is called disqualification on the ground of double membership.
- **Statement 2 is correct:** Under the **Representation of the People Act**, if a sitting member of Parliament is simultaneously elected to a **state legislature**, they must vacate one of the two seats. If they do not resign from the state legislature within the stipulated period, their seat in Parliament is vacated.
- **Statement 3 is correct:** If a member is absent from **all meetings of the House for a period of 60 days** without the permission of the House, the House may declare their seat vacant. Days during which the House is prorogued or adjourned for more than four consecutive days are not counted while calculating this 60-day period.
- **Statement 4 is incorrect:** A member of Parliament who wishes to resign does not address their resignation to the **President of India**. A member of the **Lok Sabha** submits their resignation to the **Speaker of the Lok Sabha**, while a member of the **Rajya Sabha** submits their resignation to the **Chairman of the Rajya Sabha**. The Speaker or Chairman must be satisfied that the resignation is genuine and voluntary before accepting it.
- List of grounds for vacation of a seat in Parliament:
 - ✓ Double membership between the two Houses of Parliament.
 - ✓ Simultaneous membership of Parliament and a state legislature.
 - ✓ Disqualification under Articles 102 and 103.
 - ✓ Resignation to the Speaker or Chairman.

- ✓ Absence for 60 days without permission.
- ✓ Court declaring election void.
- ✓ Expulsion by the House.
- ✓ Election to the office of President or Vice-President.
- ✓ Appointment as the Governor of a state.

Q 22. Ans. A

Explanation:

- **Pair 1 is correctly matched:** Article 15 prohibits discrimination on grounds of religion, race, caste, sex, or place of birth. It uses the term “**citizen**” and is therefore available **only to citizens** of India and not to foreigners.
- **Pair 2 is correctly matched:** Article 14 guarantees equality before the law and equal protection of the laws. It uses the term “**any person**” and is therefore available to **both citizens and foreigners** within the territory of India.
- **Pair 3 is incorrectly matched:** Article 16 guarantees equality of opportunity in matters of public employment. It uses the term “**citizen**” and is therefore available **only to citizens** of India and not to foreigners.
- **Pair 4 is incorrectly matched:** Article 18, dealing with the abolition of titles, is available to **both citizens and foreigners**. While Article 18(2) specifically addresses citizens (no citizen shall accept a title from a foreign state), Article 18(3) addresses non-citizens holding office under the State (no non-citizen shall accept a title from a foreign state without the President’s consent), and Article 18(4) applies to all persons holding office of profit under the State. Thus, Article 18 is not exclusively restricted to citizens.
- The Fundamental Rights available **only to citizens** are under Articles 15, 16, 19, 29, and 30. All other Fundamental Rights use the expression “any person” or “no person” and are available to both citizens and foreigners. These include Articles 14, 17, 18, 20, 21, 21A, 22, 23, 24, 25, 26, 27, and 28.

Q 23. Ans. A

Explanation:

- **Assertion (A) is correct:** The Rajya Sabha is a **permanent body** and unlike the Lok Sabha, it **cannot be dissolved**. Only the Lok Sabha is subject to dissolution, either upon the expiry of its five-year term or by the President on the advice of the Prime Minister.
- **Reason (R) is correct:** The Rajya Sabha has a **staggered membership system** wherein **one-third**

of its members retire every two years and are replaced by newly elected members. The term of each member of the Rajya Sabha is **six years**.

- **Reason (R) is the correct explanation of Assertion (A):** The Rajya Sabha is a continuing chamber **precisely because** of this rotational retirement system. Since only one-third of its members retire at a time, the House never becomes completely empty and always has sitting members. This staggered system ensures **continuity of membership** at all times, which is what makes dissolution unnecessary and structurally impossible. If all members retired simultaneously, dissolution would become a possibility, as is the case with the Lok Sabha.
- It is important to note that although the Rajya Sabha cannot be dissolved, the **President can prorogue** the Rajya Sabha. Also, when the Lok Sabha is dissolved, any bill pending before a **joint sitting** lapses, but bills pending exclusively before the Rajya Sabha do not lapse.
- The Rajya Sabha at present has a maximum strength of **250 members**, of which **238** are representatives of states and union territories elected by indirect election, and **12** are nominated by the President for their expertise in literature, science, art, and social service.

Q 24. Ans. D

Explanation:

- The **Basic Structure doctrine** was propounded by the Supreme Court in the landmark **Kesavananda Bharati case (1973)**. The Court held that while Parliament has wide powers to amend the Constitution under Article 368, it cannot amend the **basic structure or framework** of the Constitution. Since then, the Supreme Court has identified various elements as part of the basic structure in different cases.
- **Supremacy of the Constitution** is a basic feature. The Constitution is the supreme law of the land and all organs of the State, including Parliament, are subordinate to it. No amendment can be made that destroys this supremacy.
- **Judicial Review** is a basic feature. It was held to be part of the basic structure in the Kesavananda Bharati case itself and reinforced in subsequent cases. Judicial review ensures that all laws and executive actions conform to the Constitution and is essential for upholding constitutional supremacy.
- **Rule of Law** is a basic feature. The Supreme Court held that the Rule of Law embodied in Article 14 is a basic feature of the Constitution. It means that no

person, including the government, is above the law and that all are subject to ordinary law.

- **Harmony and balance between Fundamental Rights and DPSP** was declared a basic feature by the Supreme Court in the **Minerva Mills case (1980)**. The Court held that the Constitution has struck a balance between Part III and Part IV, and this balance cannot be tilted in favour of either by destroying the other.
- Other elements identified as part of the basic structure by the Supreme Court include:
 - ✓ Republican and democratic form of government.
 - ✓ Secular character of the Constitution.
 - ✓ Federal character of the Constitution.
 - ✓ Separation of powers between the legislature, executive, and judiciary.
 - ✓ Sovereignty, unity, and integrity of India.
 - ✓ Independence of the judiciary.
 - ✓ Free and fair elections.
 - ✓ Parliamentary system of government.
 - ✓ Limited power of Parliament to amend the Constitution.
 - ✓ Powers of the Supreme Court under Articles 32, 136, 141, and 142.
 - ✓ Powers of the High Courts under Articles 226 and 227.

Q 25. 25.Ans. B

Explanation:

- The Rajya Sabha currently allocates 8 seats to Union Territories. Of these, 3 seats are allocated to Delhi (NCT), 4 seats to Jammu and Kashmir and 1 seat to Puducherry.
- The remaining Union Territories such as Chandigarh, Dadra and Nagar Haveli and Daman and Diu, Lakshadweep, Andaman and Nicobar Islands, and Ladakh do not have representation in the Rajya Sabha as they do not have Legislative Assemblies.
- The 4th Schedule to the Constitution deals with the allocation of seats in the Rajya Sabha to the states and Union Territories. The maximum strength of the Rajya Sabha is 250, of which 238 are representatives of states and Union Territories and 12 are nominated by the President. The present strength is 245.

Q 26. Ans. D

Explanation:

- **Total number of DRSCs (a) → 24 (3):** Originally, 17 DRSCs were set up in 1993. Their number was subsequently increased to **24 in 2004**. These

committees were established to strengthen the financial and legislative oversight function of Parliament over the executive.

- **Total members in each committee (b) → 31 (4):** Each DRSC consists of **31 members**, of which **21 are from the Lok Sabha** and **10 are from the Rajya Sabha**. Ministers are not eligible to be members of these committees.
- **DRSCs working under Lok Sabha (c) → 16 (1):** Of the 24 DRSCs, **16 committees** function under the **Lok Sabha**.
- **DRSCs working under Rajya Sabha (d) → 8 (2):** The remaining **8 committees** function under the **Rajya Sabha**.
- The DRSCs examine Bills referred to them, study the demands for grants of ministries before they are discussed in the House, and examine the working of the ministries under their jurisdiction. Their term is **one year**. A Bill referred to a DRSC is not referred to a Select or Joint Committee of Parliament.

Q 27. Ans. C

Explanation:

- **Pair 1 is correctly matched:** Article 361 grants immunity to the **President and Governors** from court proceedings in respect of acts done in the exercise and performance of their powers and duties. No criminal proceedings can be instituted or continued against the President or Governor in any court during their term of office. Civil proceedings can be instituted against them only after a two-month notice.
- **Pair 2 is correctly matched:** Article 361-A provides protection to the **publication in a newspaper or electronic media** of a substantially true report of any proceedings of either House of Parliament or the Legislative Assembly or Legislative Council of a State, unless the publication is proved to have been made with malice.
- **Pair 3 is incorrectly matched:** Article 105 deals with the powers, privileges, and immunities of **Parliament and its members**, not state legislature members. The privileges of **state legislature members** are covered under **Article 194**. Article 105 is an exception to equality in relation to Parliament, not state legislatures.
- **Pair 4 is correctly matched:** Article 31-C provides that no law giving effect to the **Directive Principles** contained in Article 39(b) and (c) shall be deemed void on the ground that it is inconsistent with or takes away the rights conferred by **Articles 14 and 19**.

This is an important exception to the right to equality as it allows certain laws implementing Directive Principles to override Fundamental Rights.

- The Constitution itself contains the following exceptions to the right to equality under Article 14:
 - ✓ Article 105: Privileges of Parliament and its members.
 - ✓ Article 194: Privileges of state legislature members.
 - ✓ Article 361: Immunity to President and Governors.
 - ✓ Article 361-A: Protection to publication of parliamentary proceedings.
 - ✓ Article 31-C: Saving of laws giving effect to certain Directive Principles.

Q 28. Ans. C

Explanation:

- **Pair 1 is incorrectly matched:** The Finance Minister presents the Budget only to the Lok Sabha, not to both Houses of Parliament. Since the Budget involves taxation and expenditure, and Money Bills can only originate in the Lok Sabha, the Budget is presented exclusively there. The Rajya Sabha can only discuss the Budget but cannot vote on the demands for grants.
- **Pair 2 is correctly matched:** During the stage of general discussion, only the general principles and policies of the Budget are discussed. Cut motions cannot be moved at this stage. Cut motions are moved only during the stage of voting on demands for grants, which is a later stage.
- **Pair 3 is correctly matched:** After the general discussion, Parliament is adjourned for three to four weeks to allow the Departmental Standing Committees to examine the demands for grants of the concerned ministries and departments and report back to the Houses.
- **Pair 4 is correctly matched:** The Appropriation Bill is introduced after the voting on demands for grants is completed. It authorises the government to withdraw money from the Consolidated Fund of India to meet the expenditure charged upon it as well as the expenditure voted by the Lok Sabha. No money can be withdrawn from the Consolidated Fund without the enactment of this Bill.

Q 29. Ans. B

Explanation:

- **Statement 1 is correct:** A candidate for the office of Vice President must be a citizen of India. This is a

fundamental requirement laid down under Article 66(3) of the Constitution.

- **Statement 2 is correct:** A candidate must have completed 35 years of age at the time of election to the office of Vice President.
- **Statement 3 is correct:** A candidate must be qualified for election as a member of the Rajya Sabha. This means he must be a registered voter in any parliamentary constituency in India.
- **Statement 4 is incorrect:** A candidate can or cannot be a member of either House of Parliament or a House of the state legislature at the time of election. If a sitting member is elected Vice-President, he is deemed to vacate his seat upon entering office..
- Apart from the above, one additional qualification is that the candidate should not hold any office of profit under the Government of India, any state government, or any local or other authority subject to the control of any of the said governments.
- The offices of President and Vice President are not considered offices of profit. Hence, a sitting President or Vice President is not disqualified from standing for re-election to that office.

Q 30. Ans. C

Explanation:

- **Statement 1 is correct:** Article 18(1) of the Constitution prohibits the state from conferring any title on any person, whether a citizen or a non-citizen. However, it makes an exception for military distinctions and academic distinctions, which are not treated as titles under this provision.
- **Statement 2 is incorrect:** Article 18(2) explicitly provides that no citizen of India shall accept any title from any foreign state. This is an absolute prohibition on citizens, and there is no provision allowing them to accept foreign titles under any circumstance. It is non-citizens or holders of profit or trust under the state who are separately dealt with under Articles 18(3) and 18(4).
- **Statement 3 is correct:** The Supreme Court in the Balaji Raghavan case (1995) held that National Awards such as Bharat Ratna, Padma Vibhushan, Padma Bhushan, and Padma Shri do not constitute titles within the meaning of Article 18. Therefore, the conferment of these awards does not violate the constitutional prohibition. However, the Court also ruled that these awards cannot be used as suffixes or prefixes to the names of the recipients, as that would amount to a title.
- Article 18 is part of the Right to Equality under

Part III of the Constitution. It aims to uphold the principle of equality by abolishing the feudal practice of granting titles, which was prevalent during British rule through honours such as Rai Bahadur and Khan Bahadur.

Q 31. Ans. C

Explanation:

- **Pair 1 is correctly matched:** Holding an office of profit under the Union or state government is a disqualification under **Article 102**. If any question arises as to whether a member has incurred this disqualification, it is decided by the **President** after obtaining the opinion of the **Election Commission**, and the President is bound to act according to that opinion.
- **Pair 2 is correctly matched:** Being an undischarged insolvent is also a disqualification under **Article 102**, and the question of such disqualification is similarly decided by the **President** on the opinion of the Election Commission.
- **Pair 3 is incorrectly matched:** Voluntarily giving up party membership is a ground for disqualification under the **Tenth Schedule (Anti-Defection Law)**. Such questions are decided by the **Presiding Officer** of the respective House, i.e., the Speaker in case of the Lok Sabha and the Chairman in case of the Rajya Sabha. The Election Commission's role is limited to deciding disqualifications arising under **Article 102**, not those arising under the Tenth Schedule.
- **Pair 4 is correctly matched:** Voting contrary to party directions is also a ground for disqualification under the **Tenth Schedule**, and therefore it is decided by the **Presiding Officer** of the House.

Q 32. Ans. B

Explanation:

- The primary function of the **Business Advisory Committee** is to **recommend the time to be allotted** for the discussion of various stages of government Bills and other legislative and non-legislative business of the House. It essentially regulates the **programme and timetable** of the House.
- The Lok Sabha's Business Advisory Committee consists of **15 members**, including the **Speaker as its Chairman**. The Rajya Sabha's Business Advisory Committee consists of **11 members**, including the **Chairman of the Rajya Sabha as its ex-officio Chairman**.
- The other options correspond to different parliamentary committees:
- **Auditing government expenditure** is the function of the **Public Accounts Committee**.

- **Examining subordinate legislation** is the function of the **Committee on Subordinate Legislation**.
- **Overseeing privileges of members** is the function of the **Committee of Privileges**.

Q 33. Ans. C

Explanation:

- **Statement A is correct:** The Prevention of Insults to National Honour Act (1971) penalises disrespect shown to the Constitution of India, the National Flag, and the National Anthem. This directly gives effect to Article 51A(a), which imposes a duty on every citizen to abide by the Constitution and respect its ideals and institutions, the National Flag, and the National Anthem.
- **Statement B is correct:** The Representation of People Act (1951) provides for the disqualification of a person from the membership of Parliament or a state legislature if they are convicted for the offence of promoting enmity between different sections of society on grounds of religion, race, place of birth, language, etc. This gives effect to Article 51A(e), which mandates promoting harmony and the spirit of common brotherhood.
- **Statement C is incorrect:** The Forest (Conservation) Act (1980) gives effect to Article 51A(g) but specifically addresses indiscriminate deforestation and checks on the diversion of forest land for non-forest purposes. Article 51A(g) covers forests, lakes, rivers, and wildlife broadly, but the Forest (Conservation) Act does not extend its provisions to lakes and rivers. Those are covered under separate environmental legislations.
- **Statement D is incorrect:** The Wildlife (Protection) Act (1972) was enacted to protect rare and endangered species of flora and fauna. It gives effect to Article 51A(g), which imposes a duty on every citizen to protect and improve the natural environment including forests, lakes, rivers, and wildlife, and to have compassion for living creatures.
- The following legislations have been enacted to enforce Fundamental Duties:
 - ✓ Prevention of Insults to National Honour Act (1971) → Article 51A(a)
 - ✓ Representation of People Act (1951) → Article 51A(e)
 - ✓ Wildlife (Protection) Act (1972) → Article 51A(g)
 - ✓ Forest (Conservation) Act (1980) → Article 51A(g)
 - ✓ Protection of Civil Rights Act (1955) → Article 51A(e)
 - ✓ Civil Defence Act (1968) → Article 51A(d)

Q 34. Ans. A

Explanation:

- **Statement 1 is correct:** Equality before the law is a **negative concept** as it denotes the **absence of any special privileges** in favour of any person. It means that all persons, irrespective of rank or status, are equally subject to the ordinary law of the land administered by ordinary law courts.
- **Statement 2 is incorrect:** The concept of equality before the law has been borrowed from the **British Constitution**, specifically from the concept of **Rule of Law** as propounded by **A.V. Dicey**. It is the second expression in Article 14, i.e., **equal protection of the laws**, that has been taken from the **American Constitution**. Equal protection of the laws is a **positive concept** that ensures equality of treatment in equal circumstances, meaning that among equals the law should be equal and equally administered.
- The distinction between the two expressions in Article 14 is as follows:
 - ✓ **Equality before the law** (British origin): Negative concept, implies absence of special privilege, all persons subject to same law.
- **Equal protection of the laws** (American origin): Positive concept, implies equal treatment in equal circumstances, allows for reasonable classification.

Q 35. Ans. D

Explanation:

- **Statement 1 is correct:** The last session of the **existing Lok Sabha**, after a new Lok Sabha has been elected, is popularly known as the **lame-duck session**. It is called so because most of the members attending it are those who have already lost their seats in the new Lok Sabha and are therefore attending as outgoing members with diminished political authority.
- **Statement 2 is correct:** Members of the outgoing Lok Sabha who could **not get re-elected** to the new Lok Sabha are referred to as **lame-ducks**. The term is borrowed from American political vocabulary, where it is used to describe elected officials who are serving out the remainder of their term after their successor has been elected.

Q 36. Ans. D

Explanation:

- **Qualifications for membership of Parliament (a) → Article 84 (1):** Article 84 lays down that a person must be a citizen of India, not less than **30 years of**

age for Rajya Sabha and **25 years** for Lok Sabha, and must possess such other qualifications as prescribed by Parliament under law.

- **Disqualifications for membership (b) → Article 102 (2):** Article 102 specifies the grounds on which a person shall be disqualified for being chosen as or being a member of either House of Parliament. These include holding an office of profit, being of unsound mind, being an undischarged insolvent, not being a citizen of India, and being disqualified under any law made by Parliament.
- **Powers and privileges of Houses (c) → Article 105 (3):** Article 105 deals with the powers, privileges, and immunities of Parliament and its members. It includes freedom of speech in Parliament and immunity from court proceedings for anything said or any vote given in Parliament.
- **Joint sitting of both Houses (d) → Article 108 (4):** Article 108 provides for a joint sitting of both Houses of Parliament in case of a deadlock over an ordinary Bill. The joint sitting is presided over by the **Speaker of the Lok Sabha** and the Bill is passed by a majority of the total number of members of both Houses present and voting.

Q 37. Ans. A

Explanation:

- **Statement 1 is correct:** Article 15(3) provides that nothing in Article 15 shall prevent the State from making any **special provision for women and children**. This is an exception to the general rule of non-discrimination and enables the State to make protective or beneficial legislation for these groups.
- **Statement 2 is correct:** Article 15(4), added by the **1st Constitutional Amendment Act, 1951**, permits the State to make special provisions for the advancement of any **socially and educationally backward classes** of citizens or for **Scheduled Castes and Scheduled Tribes**. This clause was added after the Supreme Court's judgment in the **State of Madras v. Champakam Dorairajan case (1951)**, which struck down caste-based reservations in educational institutions.
- **Statement 3 is incorrect:** Article 15(5), added by the **93rd Constitutional Amendment Act, 2005**, explicitly **permits** the State to make special provisions for the advancement of socially and educationally backward classes, SCs and STs in relation to their **admission to educational institutions including private educational institutions**, whether aided or unaided by the State. However, this does not apply

to **minority educational institutions** referred to in Article 30(1). Additionally, Article 15(6), added by the **103rd Constitutional Amendment Act, 2019**, further permits reservation for **Economically Weaker Sections (EWS)** up to **10%** in both government and private educational institutions, excluding minority institutions.

Q 38. Ans. A

Explanation:

- **Assertion (A) is correct:** Fundamental Rights guaranteed under Part III of the Constitution are **not absolute**. They are qualified rights subject to **reasonable restrictions** that the State can impose. For instance, Article 19 guarantees six freedoms but also permits the State to impose reasonable restrictions on them on grounds such as sovereignty and integrity of India, security of the State, public order, decency, and morality.
- **Reason (R) is correct:** The Constitution consciously seeks to strike a **balance between individual liberty and social control**. While Fundamental Rights protect individuals from arbitrary State action, the reasonable restrictions ensure that individual freedoms do not come at the cost of public order, national security, or social welfare.
- **Reason (R) is the correct explanation of Assertion (A):** The very reason why Fundamental Rights are not absolute flows from the constitutional objective of balancing individual liberty with social control. The restrictions on Fundamental Rights are not arbitrary limitations but are the **constitutional mechanism** through which this balance is maintained. Absolute rights would render social control impossible, while their complete absence would make individual liberty meaningless. It is this need for balance that necessitates reasonable restrictions, making (R) the foundational explanation for (A).

Q 39. Ans. C

Explanation:

- **Statement 1 is correct:** An Adjournment Motion is introduced in Parliament to draw the attention of the House to a **definite matter of urgent public importance**. It is regarded as an extraordinary device as it interrupts the normal business of the House and involves an element of censure against the government.
- **Statement 2 is correct:** An Adjournment Motion requires the support of **at least 50 members** to

be admitted. If the Speaker finds the motion in order and at least 50 members rise in support, the motion is admitted and the House may take it up for discussion.

- **Statement 3 is incorrect:** An Adjournment Motion can be introduced **only in the Lok Sabha** and NOT in the Rajya Sabha. The Rajya Sabha does not have this procedural device. This is one of the special powers of the Lok Sabha that reflects its greater accountability to the people as the directly elected House. The Rajya Sabha has an alternative device called the '**Motion for Papers**' to raise matters of public importance, but this is distinct from the Adjournment Motion.

Q 40. Ans. A

Explanation:

- **Pair 1 is correctly matched:** During the **First Reading**, the bill is introduced in the House and subsequently **published in the Gazette of India**. No discussion takes place at this stage. If it is a government bill, the minister-in-charge asks for leave to introduce the bill, and if leave is granted, the bill is introduced.
- **Pair 2 is correctly matched:** The **Second Reading** consists of two sub-stages. The first is the **stage of general discussion**, where the House debates the principles of the bill. The second is the **committee stage and consideration stage**, where the bill undergoes **detailed scrutiny and clause-by-clause consideration**. Amendments can be proposed and voted upon at this stage.
- **Pair 3 is correctly matched:** During the **Third Reading**, the debate is confined strictly to **arguments in support of or against the bill as a whole**. No amendments can be proposed at this stage and the bill is either passed or rejected in its entirety.
- **Pair 4 is incorrectly matched** on two counts. First, a Joint Sitting is NOT held **automatically**. It is **summoned by the President** after notifying both Houses of his intention to do so. Second, the prescribed period of delay is **six months**, not three months. A deadlock is deemed to have arisen if more than **six months** have elapsed from the date of receipt of the bill by the other House without it being passed.

Q 41. Ans. B

Explanation:

- The **Committee of Privileges** in the Lok Sabha consists of **15 members** nominated by the Speaker.

- Its counterpart in the Rajya Sabha consists of **10 members** nominated by the Chairman of the Rajya Sabha.
- The function of this committee is to examine every question involving a breach of privilege of the House or its members or officers, referred to it by the House or by the Speaker. It then determines with reference to the facts of each case whether a breach of privilege has been committed and makes recommendations regarding the punishment to be given to the offender.
- Parliamentary privileges can be violated by both **members** and **outsiders**. When a privilege is violated, it amounts to **contempt of the House**, for which the House has the power to punish the offender.

Q 42. Ans. C

Explanation:

- **Assertion (A) is correct:** The Governor, unlike the President, possesses **explicit constitutional discretion** to act without the advice of the Council of Ministers in certain matters. This is a significant distinction between the two offices. The President has no constitutional discretion and acts on the advice of the Union Cabinet in all matters. The Governor, however, has both **constitutional discretion** (explicitly provided in the Constitution such as reservation of bills under Article 200 and recommending President's Rule under Article 356) and **situational discretion** (exercised in circumstances such as appointment of Chief Minister when no party commands a clear majority in the state legislature).
- **Reason (R) is false:** Article 163 does provide a binding provision for the Governor equivalent to Article 74 for the President. It states that there shall be a Council of Ministers to **aid and advise the Governor** in the exercise of his functions, and the Governor is bound to act on their advice. The critical difference is that Article 163 contains an **explicit exception** allowing the Governor to act in his discretion in matters where the Constitution so requires. So both the President under Article 74 and the Governor under Article 163 are constitutionally bound by Council of Ministers' advice. The Governor's advantage lies not in the absence of a binding provision but in the **explicit exception carved out** for discretionary matters within Article 163 itself.

Q 43. Ans. B

Explanation:

- **Pair 1 is correctly matched:** The **Speaker** nominates a panel of not more than ten members as the **Panel of Chairpersons** of the Lok Sabha. Any member from this panel can preside over the House when both the Speaker and the Deputy Speaker are absent from the sitting.
- **Pair 2 is correctly matched:** The **Chairman of the Rajya Sabha**, who is the Vice-President of India in his ex-officio capacity, nominates a panel of Vice-Chairpersons for the Rajya Sabha. Any member from this panel can preside when both the Chairman and the Deputy Chairman are absent from the sitting.
- **Pair 3 is incorrectly matched:** A member of the Panel of Chairpersons **cannot preside** over the House when the office of the Speaker or the Deputy Speaker is **vacant**. Their authority is limited to presiding only when both the Speaker and the Deputy Speaker are **temporarily absent** from a sitting. When the office of the Speaker falls vacant, the duties are performed by the **Deputy Speaker**, and if both offices are vacant, by such a member of the House as the **President may appoint** for the purpose.
- **Pair 4 is correctly matched:** Both in the Lok Sabha and the Rajya Sabha, the Panel consists of a **maximum of ten members**. These members hold office until a new panel is nominated after the constitution of a new House.

Q 44. Ans. D

Explanation:

- **Article 39A (a) → Equal justice and free legal aid (3):** Article 39A was inserted by the **42nd Constitutional Amendment Act, 1976**. It directs the State to secure equal justice and provide free legal aid to the poor and weaker sections of society to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.
- **Article 40 (b) → Organisation of village panchayats (4):** Article 40 directs the State to organise **village panchayats** and endow them with such powers and authority as may be necessary to enable them to function as units of self-government. This article formed the basis for the **73rd Constitutional Amendment Act, 1992**, which gave constitutional status to Panchayati Raj institutions.

- **Article 48 (c) → Organisation of agriculture and animal husbandry (1):** Article 48 directs the State to organise agriculture and animal husbandry on modern and scientific lines. It also directs the State to take steps to preserve and improve breeds of cattle and prohibit the slaughter of cows, calves, and other milch and draught cattle.
- **Article 49 (d) → Protection of monuments of national importance (2):** Article 49 directs the State to protect every monument, place, or object of artistic or historic interest which has been declared to be of national importance, from spoliation, disfigurement, destruction, removal, disposal, or export.

Q 45. Ans. B

Explanation:

- **Pair 1 is correctly matched:** The concept of Fundamental Rights has been borrowed from the Constitution of the United States of America. The idea of a justiciable bill of rights that citizens can enforce against the State through courts was drawn from the American model.
- **Pair 2 is correctly matched:** The concept of Directive Principles of State Policy has been borrowed from the Irish Constitution (Constitution of Ireland). Ireland in turn had drawn inspiration from the Spanish Constitution for this concept.
- **Pair 3 is incorrectly matched:** Fundamental Duties were NOT borrowed from the French Constitution. They were inspired by the Constitution of the erstwhile USSR (Soviet Union). The 42nd Constitutional Amendment Act, 1976 added Fundamental Duties to the Indian Constitution under Article 51A on the recommendation of the Swaran Singh Committee, drawing from the Soviet model of incorporating duties alongside rights.
- **Pair 4 is incorrectly matched:** The concept of Equal Protection of Laws has been borrowed from the American Constitution, not the British Constitution. Article 14 contains two expressions: "Equality before Law", which is borrowed from the British Constitution (Rule of Law as propounded by A.V. Dicey), and "Equal Protection of Laws", which is borrowed from the American Constitution.

Q 46. Ans. B

Explanation:

- The Swaran Singh Committee, constituted by the government in 1976 during the Emergency period, recommended the inclusion of a separate chapter

on Fundamental Duties in the Constitution. Based on its recommendations, the 42nd Constitutional Amendment Act, 1976 added a new Part IVA containing Article 51A with ten Fundamental Duties.

- The committee had originally recommended eight Fundamental Duties, but ten were ultimately incorporated. It also recommended that Parliament should be empowered to impose penalties or punishments for violation of Fundamental Duties, but this recommendation was not accepted.
- The other options are unrelated to Fundamental Duties:
 - ✓ Balwant Rai Mehta Committee (1957) recommended the establishment of the Panchayati Raj system of democratic decentralisation.
 - ✓ Verma Committee (1999) was constituted to operationalise Fundamental Duties and identify ways to teach and enforce them, not to recommend their inclusion.
 - ✓ Kothari Commission (1964-66) dealt with educational reforms in India.

Q 47. Ans. A

Explanation:

- **Statement 1 is correct:** A bill pending in the Lok Sabha at the time of its dissolution lapses automatically. Since the Lok Sabha ceases to exist upon dissolution, all business pending before it, including bills, comes to an end.
- **Statement 2 is correct:** A bill passed by the Lok Sabha but pending in the Rajya Sabha also lapses upon the dissolution of the Lok Sabha. Even though the Rajya Sabha is a permanent body, the bill cannot survive because the House that originated and passed it no longer exists in its previous composition.
- **Statement 3 is incorrect:** A bill pending in the Rajya Sabha but not passed by the Lok Sabha does NOT lapse on the dissolution of the Lok Sabha. Since the Rajya Sabha is a permanent body and is not subject to dissolution, bills originating in and pending before it are unaffected by the dissolution of the Lok Sabha.
- **Statement 4 is incorrect:** A bill pending before a joint sitting that has been notified by the President before the dissolution of the Lok Sabha does NOT lapse. The notification of a joint sitting by the President before dissolution preserves the bill, and the joint sitting can be held after the constitution of a new Lok Sabha.

- The bills that do not lapse on dissolution of Lok Sabha are:
 - ✓ A bill pending in the Rajya Sabha but not passed by the Lok Sabha.
 - ✓ A bill passed by both Houses but pending assent of the President.
 - ✓ A bill passed by both Houses but returned by the President for reconsideration.
 - ✓ A bill pending before a joint sitting already notified by the President.

Q 48. 48.Ans. A

Explanation:

- **Statement 1 is correct:** The Mandal Commission was the **Second Backward Classes Commission**, appointed in 1978-79 by the **Morarji Desai government** under the Janata Party. It was chaired by **B.P. Mandal**. The First Backward Classes Commission was the **Kaka Kalelkar Commission**, appointed in 1953. The Mandal Commission submitted its report in 1980, but its recommendations were implemented only in 1990 by the **V.P. Singh government**.
- **Statement 2 is correct:** The Mandal Commission recommended **27% reservation** for Other Backward Classes (OBCs) in central government services and public sector undertakings. This was in addition to the existing **22.5% reservation** for Scheduled Castes (15%) and Scheduled Tribes (7.5%), bringing the total reservation to **49.5%**.
- **Statement 3 is incorrect:** The Supreme Court in the landmark **Indra Sawhney case (1992)**, also known as the Mandal Commission case, held that the total reservation under Article 16(4) should **not exceed 50%** as a rule. Crossing the 50% limit would be unconstitutional and violative of the right to equality. The Court held that only in **extraordinary situations** pertaining to far-flung and remote areas could this limit be relaxed as an exception. The 50% ceiling applies to reservations made in a single year and not to the total posts in a cadre.

Q 49. Ans. C

Explanation:

- **Assertion (A) is correct:** Article 17 abolishes **untouchability** and forbids its practice in any form. The enforcement of any disability arising out of untouchability is declared an offence punishable in accordance with law. Parliament enacted the **Protection of Civil Rights Act, 1955** (originally called the Untouchability Offences Act) to give

effect to this provision. Article 17 is available against both the **State and private individuals**, making it one of the few Fundamental Rights that operates horizontally.

- **Reason (R) is false:** The Constitution of India **does not define the term 'untouchability'** anywhere, including under **Article 366**, which is the definitions article of the Constitution. The term has been deliberately left undefined in the Constitution. The Supreme Court has held that the term must be understood in its **historical and sociological context**, referring to the social disabilities imposed on certain classes of persons by reason of their birth into particular castes. The scope of the term was further clarified through judicial interpretation and the Protection of Civil Rights Act, 1955.

Q 50. Ans. B

Explanation:

- **Statement 1 is incorrect:** The office of the Whip is **not mentioned** in the Constitution of India, the Rules of the House, or in any Parliamentary Statute. It is entirely based on the **conventions of parliamentary government** inherited from the British system. Its existence and functions are governed by the rules and practices of the respective political parties.
- **Statement 2 is correct:** The Whip is appointed by each political party in Parliament and is responsible for **regulating and monitoring the attendance and voting behaviour** of party members in Parliament. He ensures that members are present in the House during important votes, issues directions to members on how to vote on particular bills or motions, and maintains party discipline. Defiance of the Whip's directions can lead to **disqualification** of the member under the **Tenth Schedule (Anti-Defection Law)** if it amounts to voting contrary to party directions or abstaining from voting.

Q 51. Ans. B

Explanation:

- **42nd Amendment Act (1976):** Added the provision of free legal aid to the poor. This amendment added Article 39A as a Directive Principle, which directs the state to secure equal justice and free legal aid to the poor and weaker sections of society so that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.
- **44th Amendment Act (1978):** Minimised inequalities in income, status, and opportunities. This amendment added clause (2) to Article 38,

which directs the state to minimise inequalities in income and endeavour to eliminate inequalities in status, facilities, and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

- 86th Amendment Act (2002): It changed the subject matter of Article 45. Prior to this amendment, Article 45 directed the state to provide free and compulsory education for all children up to the age of fourteen years. After the amendment, Article 45 was reworded to provide early childhood care and education for all children until they complete the age of six years.
- 97th Amendment Act (2011): Addition of co-operative societies. This amendment gave constitutional status and protection to co-operative societies. It added Article 43B as a new Directive Principle, which directs the state to promote voluntary formation, autonomous functioning, democratic control, and professional management of co-operative societies. It also inserted Part IXB into the Constitution dealing exclusively with co-operative societies.

Q 52. Ans. B

Explanation:

- Article 13 of the Constitution expressly declares that all laws that are inconsistent with or in derogation of the Fundamental Rights shall be void to the extent of such inconsistency. This article acts as the guardian of Fundamental Rights by making them justiciable and enforceable against legislative and executive actions.
- Article 13 operates in two dimensions. First, under Article 13(1), all laws in force in the territory of India immediately before the commencement of the Constitution, in so far as they are inconsistent with the Fundamental Rights, shall be void to the extent of such inconsistency. Second, under Article 13(2), the state shall not make any law that takes away or abridges the Fundamental Rights, and any law made in contravention of this provision shall be void to the extent of the contravention.
- Article 13(3) defines the term law broadly to include any ordinance, order, bye-law, rule, regulation, notification, custom, or usage having the force of law in the territory of India. This ensures that not only legislative enactments but also subordinate legislation and executive actions are subject to the scrutiny of Fundamental Rights.
- It is important to note that Article 13 applies only to state action and not to private conduct. The

term state for this purpose has the same meaning as defined under Article 12, which includes the Parliament, state legislatures, the Government of India, the government of each state, and all local and other authorities within the territory of India or under the control of the Government of India.

- The doctrine of judicial review in India is firmly rooted in Article 13, which empowers the courts, including the Supreme Court under Article 32 and the High Courts under Article 226, to strike down any law that violates the Fundamental Rights guaranteed under Part III of the Constitution.

Q 53. Ans. C

Explanation:

- **Pair 1 is correctly matched:** The normal term of the Lok Sabha is five years from the date of its first sitting after each general election. However, the President of India can dissolve the Lok Sabha before the expiry of its term on the advice of the Council of Ministers headed by the Prime Minister. The term can also be extended by Parliament by law during a national emergency, but only one year at a time and not extending beyond six months after the emergency has ceased to operate.
- **Pair 2 is correctly matched:** The Rajya Sabha is a permanent body and is not subject to dissolution. It continues as a body without interruption. However, one-third of its members retire at the expiration of every second year. Each member of the Rajya Sabha has a tenure of six years, and the retiring members are eligible for re-election.
- **Pair 3 is correctly matched:** The normal term of a State Legislative Assembly is five years from the date of its first meeting after each general election. Like the Lok Sabha, the Governor can dissolve the Legislative Assembly before the expiry of its term on the advice of the Council of Ministers. Its term can also be extended during a national emergency in the same manner as the Lok Sabha.
- **Pair 4 is incorrectly matched:** The Legislative Council, like the Rajya Sabha at the Centre, is a permanent body and is not subject to dissolution. One-third of its members retire at the expiration of every second year. Each member of the Legislative Council holds office for a term of six years.

Q 54. Ans. B

Explanation:

- **Statement 1 is incorrect:** The position of the Leader of the Opposition is not explicitly mentioned

anywhere in the original text of the Constitution of India. It was given statutory recognition for the first time through the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977. Prior to this, the position had no formal legal basis, though it was recognised in parliamentary practice and conventions.

- **Statement 2 is correct:** For a party to have its leader recognised as the Leader of the Opposition in either House of Parliament, that party must have at least one-tenth of the total strength of the concerned House. This is the minimum threshold prescribed for official recognition, without which the leader of a party, however prominent, cannot be formally designated as the Leader of the Opposition.
- **Statement 3 is correct:** The Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 provides that the Leader of the Opposition in both the Lok Sabha and the Rajya Sabha is entitled to receive salary, allowances, and other facilities equivalent to those of a Cabinet Minister. This reflects the constitutional importance attached to the role of the Leader of the Opposition in a parliamentary democracy.
- The Leader of the Opposition plays a crucial role in the functioning of parliamentary democracy. He is often described as the alternative Prime Minister, as he is expected to present a credible alternative government and provide constructive criticism of the policies of the ruling government. He also plays an important role in the appointment of several constitutional and statutory authorities, including the Central Vigilance Commissioner, the Director of the Central Bureau of Investigation, and members of the National Human Rights Commission.

Q 55. Ans. D

Explanation:

- **Pair 1 is correctly matched:** The right to equality before law as enshrined in Article 14 has a negative character. It means the absence of any special privilege in favour of any individual and the equal subjection of all persons to the ordinary law of the land. It is a concept borrowed from the British common law tradition and essentially prohibits the state from conferring any special favour or advantage on any particular person or class of persons.
- **Pair 2 is correctly matched:** The right to equal protection of laws, also contained in Article 14, has a positive character. It means the right to

equal treatment in equal circumstances, that is, among equals the law should be equal and equally administered. It is a concept borrowed from the American Constitution and directs the state to take affirmative steps to ensure that persons who are similarly situated are treated alike under the law.

- **Pair 3 is correctly matched:** The Directive Principles of State Policy contained in Part IV of the Constitution are positive injunctions or obligations upon the state. They direct the state to take affirmative action and frame policies aimed at securing social and economic justice for the citizens. Unlike Fundamental Rights, which are largely negative in character and restrain the state from doing certain things, the Directive Principles require the state to actively work towards the welfare of the people.
- **Pair 4 is correctly matched:** The Fundamental Duties enumerated under Article 51A in Part IVA of the Constitution are applicable only to the citizens of India and not to foreigners or non-citizens. They were inserted by the 42nd Constitutional Amendment Act of 1976 on the recommendation of the Swaran Singh Committee, and they impose moral obligations on citizens to promote the spirit of patriotism and to uphold the unity and integrity of India.

Q 56. Ans. C

Explanation:

- **Statement 1 is correct:** According to the Citizenship Act, 1955, a person born outside India on or after January 26, 1950, but before December 10, 1992, is a citizen of India by descent if his father was a citizen of India at the time of his birth. During this period, the citizenship by descent was transmitted only through the father and not through the mother, reflecting the then prevailing patriarchal approach in matters of citizenship determination.
- **Statement 2 is correct:** The Citizenship Act, 1955, was amended in 1992 to remove the gender discrimination in the acquisition of citizenship by descent. Accordingly, a person born outside India on or after December 10, 1992, is a citizen of India by descent if either of his parents, that is, the father or the mother, was a citizen of India at the time of his birth. This amendment brought the law in conformity with the constitutional guarantee of equality and non-discrimination on the ground of sex under Article 15.
- It is important to note that citizenship by descent

is one of the five modes of acquiring Indian citizenship prescribed under the Citizenship Act, 1955. The other four modes are citizenship by birth, citizenship by registration, citizenship by naturalisation, and citizenship by incorporation of territory. The Constitution of India itself does not elaborate upon these modes in detail but leaves it to Parliament to regulate the matter of citizenship through legislation under Article 11.

- It must also be noted that a person claiming citizenship by descent is required to get his birth registered at an Indian consulate within one year of the date of birth, or with the permission of the Central Government after the expiry of the said period. This condition ensures that the state maintains proper records of citizens born abroad.

Q 57. Ans. B

Explanation:

- A Deputy Minister is the lowest rank in the hierarchy of ministers. He is attached to and assists a Cabinet Minister or a Minister of State with Independent Charge. He does not attend Cabinet meetings at all and is not entitled to do so even when specially invited, as he has no independent charge of any ministry or department.
- A Minister of State with Independent Charge is the correct answer. He is not a member of the Cabinet and therefore does not attend Cabinet meetings as a matter of right. However, he may be specially invited to attend Cabinet meetings when matters concerning his ministry or department are being discussed and his presence is considered necessary. Outside of such special invitation, he functions independently within his assigned portfolio without being part of Cabinet deliberations.
- A Parliamentary Secretary is not a minister in the strict constitutional sense. He is attached to a senior minister to assist him in the discharge of his parliamentary duties. He has no role in Cabinet meetings and is not invited to attend them under any circumstances as part of his official functions.
- The Cabinet Secretary is the head of the Cabinet Secretariat and the senior most civil servant in the Government of India. He attends Cabinet meetings in his capacity as the secretary to the Cabinet, to facilitate proceedings and maintain records, but he is not a political executive and does not participate in decision making. He is therefore not in the category of those who attend only when specially invited but rather attends in an ex officio secretarial capacity.

- The Council of Ministers has a three tier structure comprising Cabinet Ministers, Ministers of State, and Deputy Ministers. Among these, only Cabinet Ministers are regular members of the Cabinet, while Ministers of State with Independent Charge attend Cabinet meetings only when specially invited, making them distinct from full Cabinet Ministers in terms of their participation in collective decision making.

Q 58. Ans. D

Explanation:

- Article 52 simply declares that there shall be a President of India. It is the foundational provision that establishes the office of the President and does not deal with any aspect of the electoral process or the manner in which the President is to be elected.
- Article 54 deals with the composition of the electoral college for the election of the President. It provides that the President shall be elected by the members of an electoral college consisting of the elected members of both Houses of Parliament, that is, the Lok Sabha and the Rajya Sabha, and the elected members of the Legislative Assemblies of all the states including the National Capital Territory of Delhi and the Union Territory of Puducherry. Nominated members of either House of Parliament or of the state legislative assemblies are not included in the electoral college and are therefore not entitled to vote in the presidential election.
- Article 55 details the manner of election of the President of India. It provides that the election shall be held in accordance with the system of proportional representation by means of the single transferable vote and the voting shall be by secret ballot. It also lays down the principle of uniformity in the scale of representation of different states as well as parity between the states as a whole and the Union, thereby ensuring that each vote carries equal weight in the presidential election.
- Article 61 deals with the procedure for impeachment of the President and has no connection with the process of election to the office.

Q 59. Ans. B

Explanation:

- Dr. Rajendra Prasad corresponds to option 4, that is, the exercise of Absolute Veto on the PEPSU Appropriation Bill. He withheld his assent to the PEPSU Appropriation Bill, which had been passed by the Parliament. This is cited as an instance of the

exercise of absolute veto by the President of India, wherein the President withholds assent to a bill permanently, thereby preventing it from becoming a law.

- Giani Zail Singh corresponds to option 3, that is, the exercise of Pocket Veto on the Indian Post Office Amendment Bill of 1986. He neither returned the bill nor gave his assent to it, thereby keeping it pending indefinitely. This is the classic example of the exercise of pocket veto in India, where the President neither rejects nor approves a bill but simply takes no action on it, causing it to lapse due to inaction.
- R. Venkataraman corresponds to option 2, that is, the exercise of Absolute Veto on the Salary and Allowances Bill. He withheld his assent to the bill relating to the salary and allowances of members of Parliament, thereby preventing it from becoming law. This is cited as another notable instance of the exercise of absolute veto by a President of India.
- A.P.J. Abdul Kalam corresponds to option 1, that is, the exercise of Suspensive Veto on the Office of Profit Bill. He returned the Office of Profit Bill to Parliament for reconsideration, thereby exercising the suspensive veto. However, when Parliament passed the bill again without making any amendments, he was constitutionally obliged to give his assent to it, as the President cannot withhold assent after a bill is returned and repassed by Parliament.

Q 60. Ans. B

Explanation:

- The President is the authority to whom the Vice-President of India addresses his resignation. Article 67(a) of the Constitution expressly provides that the Vice-President may resign from his office by writing under his hand addressed to the President of India. The resignation takes effect from the time it is accepted by the President. This is consistent with the constitutional position of the President as the highest constitutional authority in India.
- The Prime Minister is not the authority to whom the Vice-President addresses his resignation. While the Prime Minister is the head of the Council of Ministers and occupies the most powerful position in the executive hierarchy, he has no constitutional role in the process of resignation of the Vice-President.
- The Deputy Chairman of the Rajya Sabha is not the appropriate authority to receive the resignation of

the Vice-President. The Vice-President acts as the ex-officio Chairman of the Rajya Sabha, and the Deputy Chairman presides over the Rajya Sabha in the absence of the Chairman. Since the Vice-President himself is the Chairman of the Rajya Sabha, it would be constitutionally incongruous for him to address his resignation to a functionary who is subordinate to him in the same body.

- The Chief Justice of India heads the judicial branch of the government and plays no role in the resignation of the Vice-President. His constitutional role in relation to the office of the Vice-President is limited to administering the oath of office to the President when the Vice-President is acting as the President, and he has no executive function in matters of resignation.
- It is pertinent to note that the procedure for resignation of the Vice-President is similar to that of the President, as both address their resignations to each other. Just as the Vice-President addresses his resignation to the President, the President addresses his resignation to the Vice-President under Article 56(1)(a) of the Constitution.

Q 61. Ans. B

Explanation:

- The salary and allowances of the **Prime Minister**, like those of all other ministers, are determined by **Parliament** through legislation. They are not fixed by the Constitution, nor are they determined by the President or the Ministry of Finance.
- The Prime Minister receives the salary and allowances payable to a **member of Parliament** along with additional allowances attached to the office of the Prime Minister. These emoluments are charged to the **Consolidated Fund of India** and are therefore not subject to the vote of Parliament.
- This is consistent with the position of other constitutional functionaries whose salaries are determined by Parliament, such as the **Speaker and Deputy Speaker of the Lok Sabha**, the **Chairman and Deputy Chairman of the Rajya Sabha**, and the **judges of the Supreme Court and High Courts**.

Q 62. Ans. C

Explanation:

- **Prorogation** brings a **session** of Parliament to an end. It is done by the **President** of India. After prorogation, the House does not meet until the President summons it for the next session. Prorogation not only ends the sitting but terminates the entire session.

- **Adjournment** terminates only a **sitting** of the House, not the session. The House may reconvene the next day or after a short interval within the same session. It is done by the **Presiding Officer** of the House.
- **Adjournment sine die** means adjourning the House for an **indefinite period** without naming a date to reconvene. It is also done by the **Presiding Officer**. It terminates a sitting but not the session. After adjournment sine die, the President may summon the House again, and it is after this that prorogation formally ends the session.
- **Dissolution** applies **only to the Lok Sabha** and not to the Rajya Sabha since the Rajya Sabha is a permanent body. Dissolution brings the **Lok Sabha itself** to an end and necessitates fresh general elections to constitute a new Lok Sabha. It does not merely end a session but terminates the entire House.

Q 63. Ans. D

Explanation:

- **Quorum** is the **minimum number of members** required to be present in the House before it can transact any business. It is fixed at **one-tenth of the total membership** of each House, including the Presiding Officer.
- For the **Lok Sabha**, the quorum is **55 members** and for the **Rajya Sabha**, it is **25 members**.
- If there is no quorum during a sitting, it is the duty of the Presiding Officer to either **adjourn the House** or **suspend the sitting** until there is a quorum.

Q 64. Ans. A

Explanation:

- **Assertion (A) is correct:** The Speaker of the Lok Sabha does **not vote in the first instance** on any matter before the House. This is a constitutional design to preserve the Speaker's neutrality and keep him above partisan considerations.
- **Reason (R) is correct:** The Speaker can exercise a **casting vote** only in the event of a **tie**, i.e., when votes are equally divided on both sides. The casting vote is not an ordinary vote but a mechanism to break a deadlock, and even while exercising it, the Speaker is conventionally expected to vote in favour of **further discussion** rather than for a final decision, reflecting the principle of impartiality.
- **Reason (R) is the correct explanation of Assertion (A):** The two provisions form a single coherent constitutional design. The Speaker abstains in the

first instance precisely because his voting power is **reserved exclusively** for breaking a tie. By not participating in ordinary voting, he maintains neutrality throughout proceedings, and by having a casting vote only for deadlocks, he steps in only when absolutely necessary. Both provisions together constitute the mechanism through which the Speaker's **impartiality** is institutionally upheld.

Q 65. Ans. D

Explanation:

- **Arunachal Pradesh → 60 Seats**
 - ✓ Arunachal Pradesh is a North-Eastern hill state and one of the larger states by area in the North-East.
 - ✓ Its assembly has exactly 60 seats — the bare constitutional minimum under Article 170.
 - ✓ It does not enjoy any special exception — it simply meets the minimum threshold.
 - ✓ It became a full state on 20th February 1987 (earlier a Union Territory).
- **Sikkim → 32 Seats**
 - ✓ Sikkim is the smallest state in India by area and among the least populated.
 - ✓ It merged with India in 1975 via the 36th Constitutional Amendment Act.
 - ✓ Due to its extremely small size and population, it was granted an exception to Article 170 and has only 32 seats in its Legislative Assembly.
 - ✓ This is the lowest number of assembly seats among all Indian states.
- **Goa → 40 Seats**
 - ✓ Goa is the smallest state in India by area (after Sikkim in population terms).
 - ✓ It achieved statehood on 30th May 1987 via the Goa, Daman and Diu Reorganisation Act, 1987.
 - ✓ Despite being a state, its small population and size warranted only 40 assembly seats — another exception to Article 170.
 - ✓ It is one of only a few states with assembly strength below the 60-seat minimum.
- **Haryana → 90 Seats**
 - ✓ Haryana was carved out of the erstwhile Punjab state on 1st November 1966 on a linguistic basis following the Punjab Reorganisation Act, 1966.
 - ✓ It is a normal-sized state with a significant population in northern India.
 - ✓ Its Legislative Assembly has 90 seats, well above the constitutional minimum of 60.
 - ✓ It follows the standard provisions of Article 170 without any special exception.

Q 66. Ans. B**Explanation:**

- **Assertion (A) is correct:** Unlike the President, who has no constitutional discretion, the Governor is explicitly granted constitutional discretion under Article 163. This discretion covers situations such as reservation of bills for the President's consideration under Article 200, recommending President's Rule under Article 356, and acting as administrator of an adjoining Union Territory under Article 239.
- **Reason (R) is correct:** Article 163 does state that the Governor shall act on the advice of the Council of Ministers **except in so far as he is required to act in his discretion**. So Article 163 does explicitly identify the general framework of when the Governor must follow CoM advice, making R technically correct.
- **However, R is not the correct explanation of A:** Assertion (A) is about the Governor possessing constitutional discretion and how it differs from the President's position. The explanation for A lies in the **contrast between Article 74 and Article 163** and in the specific articles granting discretionary powers to the Governor. Reason (R) merely describes what Article 163 says about when CoM advice is binding, which is a separate aspect of the Governor's constitutional position and does not causally explain why the Governor has explicit constitutional discretion that the President lacks.

Q 67. Ans. A**Explanation:**

- **State Planning Board**
 - ✓ In most states, the Chief Minister acts as the Chairman of the State Planning Board or State Planning Commission. These bodies assist in state-level planning and development policies.
- **Inter-State Council**
 - ✓ The Inter-State Council is chaired by the Prime Minister of India, not by a Chief Minister. It is constituted under Article 263 to promote coordination between the Union and the States.
- **National Development Council (NDC)**
 - ✓ The National Development Council was chaired by the Prime Minister. Although Chief Ministers were members, they were not chairpersons.
- **Zonal Councils**
 - ✓ The Zonal Councils are chaired by the Union Home Minister. Chief Ministers of states in the zone act only as members, while the vice-chairmanship rotates among them annually.

Q 68. Ans. A**Explanation:**

- **Statement 1 is correct:** Under Article 201, when the President returns a state bill (other than a Money Bill) for reconsideration, the state legislature is expected to reconsider the bill within a reasonable period, conventionally understood as six months.
- **Statement 2 is correct:** After reconsideration, if the state legislature passes the bill again, with or without amendments, the bill is again presented to the President for assent.
- **Statement 3 is incorrect:** The President is not constitutionally bound to give assent to a state bill even after it is reconsidered and repassed by the state legislature. Unlike Article 111 dealing with Parliamentary bills, Article 201 does not impose any such obligation on the President. The President may still withhold assent or keep the bill pending.

Q 69. Ans. D**Explanation:**

- **Pair 1 is correctly matched:** The **Speaker of the Legislative Assembly** submits his resignation by writing to the **Deputy Speaker of the Assembly**.
- **Pair 2 is correctly matched:** The **Deputy Speaker of the Legislative Assembly** submits his resignation by writing to the **Speaker of the Assembly**.
- **Pair 3 is correctly matched:** The **Chairman of the Legislative Council** submits his resignation by writing to the **Deputy Chairman of the Council**.
- **Pair 4 is correctly matched:** The **Deputy Chairman of the Legislative Council** submits his resignation by writing to the **Chairman of the Council**.
- **Speaker of Lok Sabha** resigns to the **Deputy Speaker**.
- **Deputy Speaker of Lok Sabha** resigns to the **Speaker**.
- **Chairman of Rajya Sabha (Vice-President)** resigns to the **President**.
- **Deputy Chairman of Rajya Sabha** resigns to the **Chairman**.

Q 70. Ans. A**Explanation:**

- Under **Article 213**, an ordinance promulgated by the Governor ceases to operate at the expiration of **six weeks** from the reassembly of the state legislature. It must be laid before the legislature when it reassembles, and if the legislature does not approve it within this period, it lapses.

- An ordinance can cease to operate earlier than six weeks in the following situations:
- If a resolution disapproving it is passed by the **Legislative Assembly** or, in a state having a Legislative Council, by **both Houses**.
- If it is **withdrawn** by the Governor at any time.
- This provision mirrors the President's ordinance making power under **Article 123**, where a Presidential ordinance also ceases to operate **six weeks** after Parliament reassembles.
- The Governor's ordinance making power cannot be used to promulgate an ordinance on a subject that requires the **prior sanction of the President** for the introduction of legislation. In such cases, the Governor must obtain the President's instructions before promulgating the ordinance.

Q 71. Ans. D

Explanation:

- All four presiding officers of the state legislature are removed by a resolution passed by an **effective majority** of the respective House, meaning a majority of **all the then members** of that House. This is distinct from a simple majority (majority of members present and voting) or an absolute majority (majority of total membership including vacancies).
- **Speaker and Deputy Speaker of the Assembly** are removed by an effective majority of the **Legislative Assembly**.
- **Chairman and Deputy Chairman of the Council** are removed by an effective majority of the **Legislative Council**.
- A **14-day notice** must be given before moving a resolution for the removal of any of these presiding officers. During the pendency of such a resolution, the concerned presiding officer **cannot preside** over the House, though they may be present.
- For comparative reference, the same effective majority is required for the removal of the **Speaker and Deputy Speaker of the Lok Sabha** and the **Deputy Chairman of the Rajya Sabha**. However, the **Chairman of the Rajya Sabha (Vice-President)** is removed by a resolution of the Rajya Sabha passed by an **effective majority and agreed to by the Lok Sabha**, making his removal procedure distinct from the others.

Q 72. Ans. B

Explanation:

- **Assertion (A) is correct:** The Constitution prescribes only a **minimum age of 35 years** as an age-related

qualification for the appointment of a Governor. There is **no maximum age limit** specified anywhere in the Constitution for this office. This is in contrast to constitutional functionaries like judges of the Supreme Court and High Courts, who have a fixed retirement age of 65 and 62 years respectively.

- **Reason (R) is correct:** The Governor performs a **dual role** in the constitutional framework. He functions as the **constitutional head of the state** as well as the **representative or agent of the Central government** in the state. This dual character makes the Governor a unique constitutional functionary distinct from the President, who has no such agency role.
- **However, R is not the correct explanation of A:** The absence of a maximum age limit for the Governor's appointment is a matter of **constitutional design and qualification criteria**. The Governor's role as an agent of the Central government is an entirely separate constitutional fact about his functions and position. The two have no logical or causal connection. R does not in any way explain why the Constitution omits a maximum age limit for the appointment of a Governor.

Q 73. Ans. A

Explanation:

- **Statement 1 is correct:** A bill **pending in the Legislative Assembly** at the time of its dissolution lapses automatically, as the House that was considering it ceases to exist in its current composition.
- **Statement 2 is correct:** A bill **passed by the Assembly but pending in the Council** also lapses upon the dissolution of the Assembly. Even though the Legislative Council is a permanent body and is not subject to dissolution, the bill cannot survive because the House that originated and passed it no longer exists.
- **Statement 3 is incorrect:** A bill **pending in the Council but not passed by the Assembly** does **NOT** lapse on the dissolution of the Assembly. Since the Legislative Council is a permanent body and cannot be dissolved, bills originating in and pending before it are unaffected by the dissolution of the Assembly.
- **Statement 4 is incorrect:** A bill **passed by both Houses but pending assent of the Governor** does **NOT** lapse upon dissolution. The bill has already completed its legislative journey through both Houses and only requires the Governor's formal assent. Dissolution of the Assembly at this stage does not affect its validity.

- This position is identical to the lapsing of bills on the dissolution of the **Lok Sabha** at the Union level, where the same principles apply with reference to the Lok Sabha and Rajya Sabha.

Q 74. Ans. B

Explanation:

- Article 198 corresponds to option 3, that is, special procedure in respect of Money Bills in the state legislature. It lays down the procedure to be followed when a Money Bill is passed by the Legislative Assembly and transmitted to the Legislative Council in states where such a council exists. The Legislative Council has limited powers with respect to Money Bills and can only make recommendations, which the assembly may or may not accept.
- Article 199 corresponds to option 4, that is, the definition of Money Bills at the state level. It defines what constitutes a Money Bill in the context of state legislatures. A bill is deemed to be a Money Bill if it contains only provisions dealing with matters such as the imposition, abolition, remission, alteration, or regulation of any tax, the custody of the consolidated fund of the state, and other related financial matters. The Speaker of the Legislative Assembly has the final authority to certify whether a bill is a Money Bill or not.
- Article 200 corresponds to option 1, that is, the assent to bills by the Governor. It provides that when a bill passed by the state legislature is presented to the Governor, he may give his assent, withhold his assent, return the bill for reconsideration, or reserve the bill for the consideration of the President. The Governor cannot withhold assent to a Money Bill and must either give assent or reserve it for the consideration of the President.
- Article 201 corresponds to option 2, that is, bills reserved for consideration of the President. When a Governor reserves a bill for the consideration of the President, the President may give his assent, withhold his assent, or direct the Governor to return the bill to the state legislature for reconsideration. If the bill is returned and passed again by the state legislature, it does not follow that the President is bound to give assent to it, as the Constitution does not impose any such obligation on the President in this regard.

Q 75. Ans. B

Explanation:

- **Statement 1 is correct:** The term “Cabinet” was not

originally mentioned in the Constitution. It was inserted by the **44th Constitutional Amendment Act, 1978**. Before this amendment, only the term “Council of Ministers” was used in the Constitution.

- **Statement 2 is correct:** Article 352 defines the Cabinet as the council consisting of the **Prime Minister and cabinet ministers**. The significance of this definition is that the **44th Amendment Act made it mandatory** that the Cabinet must recommend the proclamation of a **National Emergency** in writing to the President before it can be issued. This was a safeguard introduced to prevent the misuse of emergency powers as had happened during the Emergency of 1975. Prior to this amendment, the Prime Minister alone could advise the President to proclaim an Emergency.

Q 76. Ans. C

Explanation:

- The **maximum strength** of the Rajya Sabha as prescribed by the Constitution is **250**. Of these, **238** are representatives of the states and union territories elected by indirect election, and **12** are nominated by the President from persons having special knowledge or practical experience in literature, science, art, and social service.
- The **present strength** of the Rajya Sabha is **245**, comprising **233** elected representatives of states and union territories and **12** nominated members. The difference between the maximum strength (250) and the present strength (245) is because not all union territories have representation in the Rajya Sabha. Only those with legislative assemblies, i.e., **Delhi and Puducherry**, are represented.
- The **4th Schedule** to the Constitution deals with the allocation of seats in the Rajya Sabha to the states and union territories.

Q 77. Ans. B

Explanation:

- A Cabinet Minister occupies the highest position in the three tier hierarchy of the Union Council of Ministers. He is a member of the Cabinet and is in charge of an independent ministry or department. He participates in Cabinet meetings as a matter of right and is collectively responsible to the Lok Sabha along with other members of the Cabinet for all decisions taken by the Cabinet.
- A Minister of State with Independent Charge occupies the second tier of the ministerial hierarchy. He holds independent charge of a ministry or

department that is not headed by a Cabinet Minister. He does not attend Cabinet meetings as a matter of right but may be specially invited when matters pertaining to his ministry are discussed. He functions independently within his portfolio but ranks below a Cabinet Minister.

- A Minister of State without Independent Charge also belongs to the second tier but is attached to a Cabinet Minister and assists him in the discharge of his duties. He does not attend Cabinet meetings unless specially invited and works under the supervision and direction of the Cabinet Minister to whom he is attached.
- A Deputy Minister occupies the lowest position in the three tier hierarchy of the Union Council of Ministers. He is attached to a Cabinet Minister or a Minister of State with Independent Charge and assists them in their parliamentary and administrative duties. He is not entitled to attend Cabinet meetings under any circumstances and has no independent charge of any ministry or department. He represents the most junior level of ministerial responsibility in the constitutional framework of executive governance in India.

Q 78. Ans. B

Explanation:

- The Deputy Chairman of the Rajya Sabha submits his resignation by writing to the **Chairman of the Rajya Sabha**.
- **Speaker of the Lok Sabha** resigns to the **Deputy Speaker**.
- **Deputy Speaker of the Lok Sabha** resigns to the **Speaker**.
- **Chairman of the Rajya Sabha (Vice-President)** resigns to the **President**.
- **Governor of a State** resigns to the **President**.
- **Chief Minister of a State** resigns to the **Governor**.

Q 79. Ans. C

Explanation:

- The Constitution requires that the maximum gap between two sessions of Parliament should not exceed **six months**. This means Parliament must meet at least **twice a year**.
- The Constitution does not specify the number of sessions that Parliament must hold in a year. By convention, Parliament meets for **three sessions** in a year:
 - ✓ **Budget Session** (February to May) which is the longest session.

✓ **Monsoon Session** (July to August).

✓ **Winter Session** (November to December).

- The **President** summons each House of Parliament to meet. The gap between the prorogation of one session and the commencement of the next session should not exceed six months, ensuring that Parliament remains a functional and active institution throughout the year.

Q 80. Ans. C

Explanation:

- **Statement 1 is correct:** Under **Article 165**, the Advocate General must be a person qualified to be appointed as a **judge of a High Court**. This means he must be a citizen of India and must have held a judicial office for ten years or been an advocate of a High Court for ten years.
- **Statement 2 is incorrect:** The Constitution does **not fix any specific term** of office for the Advocate General. He holds office **during the pleasure of the Governor** and can be removed by the Governor at any time. Since he is appointed by the Governor and holds office at his pleasure, his continuance in office is entirely dependent on the Governor's will and conventionally on the government in power.
- **Statement 3 is correct:** The remuneration of the Advocate General is determined by the **Governor**. The Advocate General is entitled to such remuneration as the Governor may determine. He has the right of audience in all courts in the state and performs such other duties as are assigned to him by the Governor.
- The Advocate General at the state level is the equivalent of the **Attorney General of India** at the Union level. Just as the Attorney General's remuneration is determined by the President, the Advocate General's remuneration is determined by the Governor.

Q 81. Ans. A

Explanation:

- **Statement 1 is correct:** Under **Article 164(2)**, the Council of Ministers is **collectively responsible** to the **Legislative Assembly** of the state. This means that all ministers stand and fall together. If a vote of no-confidence is passed against the Council of Ministers, all ministers including the Chief Minister must resign. No minister can publicly differ from a decision taken by the cabinet.
- **Statement 2 is correct:** Ministers are **individually responsible to the Chief Minister**. Since ministers

are appointed by the Governor **on the advice of the Chief Minister** under Article 164(1), the Chief Minister controls the composition of the Council of Ministers. The Chief Minister can ask any minister to resign or advise the Governor to dismiss a minister who does not conform to the collective decisions of the cabinet. A minister who cannot work harmoniously with the Chief Minister has to leave the cabinet.

- The **two dimensions of ministerial responsibility** in a parliamentary system are thus:
 - ✓ **Collective responsibility** to the Legislature: All ministers are jointly accountable to the Legislative Assembly for all government policies and decisions.
 - ✓ **Individual responsibility** to the Chief Minister: Each minister is personally accountable to the Chief Minister and holds office effectively at his pleasure, since the Governor acts on the CM's advice in appointing and dismissing ministers.

Q 82. Ans. B

Explanation:

- **Pair 1 is incorrectly matched:** Members of the state legislature enjoy immunity from civil arrest not merely for 40 days before and after a session but also during the session itself. The correct position is that a member cannot be arrested in a civil case 40 days before the commencement of a session, during the session, and 40 days after the conclusion of the session. The statement as given is therefore incomplete and hence incorrectly matched.
- **Pair 2 is incorrectly matched:** Members of the state legislature do not enjoy any immunity from criminal arrest. The privilege of freedom from arrest applies only to civil cases and not to criminal cases. A member can be arrested on criminal charges even during the session of the House. There is no provision in the Constitution or in the rules of procedure of any state legislature that grants total immunity from criminal proceedings or arrest to its members during the session.
- **Pair 3 is correctly matched:** Courts are prohibited from inquiring into the proceedings of the state legislature. No court can call into question anything said or any vote given by a member in the legislature or any of its committees. This privilege ensures the independence and sovereignty of the legislature in its internal proceedings and protects members from judicial scrutiny in respect of their conduct within the House.

- **Pair 4 is correctly matched:** The legislature has the power to exclude strangers and outsiders from its proceedings and to hold secret sittings when it considers it necessary in the public interest. This power ensures that the House can deliberate on sensitive matters without the presence of the public or the press whenever such exclusion is deemed necessary by the presiding officer or the House itself.

Q 83. Ans. A

Explanation:

- Once the Governor reserves a bill for the consideration of the President under Article 201 of the Constitution, his discretionary role in respect of that bill comes to an end completely. The matter then lies entirely between the President and the state legislature, and the Governor has no further independent authority to give or withhold assent to the bill. He acts merely as a constitutional functionary in transmitting communications between the President and the state legislature if the need arises.

Q 84. Ans. B

Explanation:

- Andhra Pradesh has a Legislative Council. It is one of the six states in India that currently have a bicameral state legislature. The Legislative Council of Andhra Pradesh was reconstituted after the bifurcation of the erstwhile state of Andhra Pradesh in 2014, which led to the creation of the new state of Telangana.
- Telangana also has a Legislative Council. When the state of Telangana was carved out of the erstwhile Andhra Pradesh in 2014, it inherited the bicameral legislature structure. Thus Telangana has both a Legislative Assembly and a Legislative Council as part of its state legislative framework.
- Karnataka has a Legislative Council and is one of the states with a bicameral legislature. The Legislative Council of Karnataka continues to function as the upper house of the state legislature, with members being elected by local bodies, graduates, teachers, members of the Legislative Assembly, and the Governor nominating certain members.
- Maharashtra also has a Legislative Council and maintains a bicameral legislature. It is one of the larger and more prominent states that has retained the upper house in its legislative structure.
- At present, only six states in India have a bicameral

legislature, that is, both a Legislative Assembly and a Legislative Council. These states are Andhra Pradesh, Telangana, Karnataka, Maharashtra, Bihar, and Uttar Pradesh. All other states have a unicameral legislature consisting only of the Legislative Assembly. The creation or abolition of a Legislative Council in a state requires a resolution passed by the concerned State Legislative Assembly and a subsequent law passed by Parliament under Article 169 of the Constitution.

Q 85. Ans. A

Explanation:

- **Assertion (A) is true:** Unlike the Parliament at the Centre where Article 108 of the Constitution provides for a joint sitting of both Houses to resolve deadlocks over ordinary bills, there is no corresponding provision for a joint sitting of the two Houses of the state legislature. The Constitution does not make any provision for a joint sitting of the Legislative Assembly and the Legislative Council in any state, making this a significant structural difference between the Union Parliament and the state legislatures.
- **Reason (R) is true and is the correct explanation of Assertion (A):** The Legislative Assembly has overriding powers over the Legislative Council in all matters. The Legislative Council is a far weaker body compared to the Legislative Assembly and can at best delay an ordinary bill by a period of four months in total. It cannot permanently reject or block any bill passed by the Assembly. In the case of Money Bills, the Council has even more limited powers and can only make recommendations, which the Assembly is free to accept or reject. Since the will of the elected Legislative Assembly ultimately prevails in all legislative matters, the framers of the Constitution did not find it necessary to provide for the mechanism of a joint sitting at the state level. The dominant position of the Legislative Assembly over the Council renders the joint sitting mechanism redundant, which is precisely why no such provision exists for the state legislature.
- This stands in contrast to the position at the Centre where both Houses of Parliament, namely the Lok Sabha and the Rajya Sabha, enjoy relatively comparable powers in respect of ordinary bills, making it necessary to provide the joint sitting mechanism as a constitutional device to resolve legislative deadlocks between them.

Q 86. Ans. D

Explanation:

- **Statement 1 is correct:** A person must be a citizen of India to be eligible for membership of the state legislature. This is a fundamental qualification that applies to both Houses of the state legislature, that is, the Legislative Assembly as well as the Legislative Council. A person who is not a citizen of India is disqualified from contesting elections to or being a member of any state legislature.
- **Statement 2 is correct:** A person must be not less than 25 years of age to be eligible for membership of the State Legislative Assembly. This age requirement is the same as that prescribed for membership of the Lok Sabha at the Centre. The rationale behind prescribing a minimum age is to ensure that the elected representatives possess a reasonable degree of maturity and experience before they assume the responsibility of lawmaking and holding the executive accountable.
- **Statement 3 is correct:** A person must be not less than 30 years of age to be eligible for membership of the State Legislative Council. This age requirement is the same as that prescribed for membership of the Rajya Sabha at the Centre. The higher minimum age for the upper house compared to the lower house reflects the constitutional intent of having a more experienced and mature body of legislators in the upper chamber.
- **Statement 4 is correct:** A person must make and subscribe to an oath or affirmation before a person authorised by the Election Commission of India for this purpose. Through this oath, the member swears to bear true faith and allegiance to the Constitution of India, to uphold the sovereignty and integrity of India, and to faithfully discharge the duties of the office. The requirement of an oath ensures that every member entering the legislature is formally committed to the constitutional values and obligations attached to the office.

Q 87. Ans. D

Explanation:

- **Pair 1 is correctly matched:** Foreign sovereigns and ambassadors enjoy complete immunity from civil and criminal proceedings in India. This is an exception to the general rule of equality before law as enshrined in Article 14 of the Constitution. This immunity is granted on the basis of the principle of sovereign equality of states and is recognised under

international law and diplomatic conventions to which India is a party.

- **Pair 2 is correctly matched:** The United Nations Organisation and its agencies enjoy diplomatic immunity and privileges in India under the United Nations (Privileges and Immunities) Act, 1947. This immunity extends to the organisation as well as its officials and representatives, enabling them to function independently and without interference from national governments. This is another recognised exception to the principle of equality before law under Article 14.
- **Pair 3 is correctly matched:** Under Article 105(2) of the Constitution, no member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof. This immunity from civil liability for voting or speaking in Parliament is a parliamentary privilege that protects members from legal proceedings and enables them to discharge their legislative duties freely and fearlessly without any fear of legal consequences.
- **Pair 4 is correctly matched:** Under Article 361 of the Constitution, the Governor of a state enjoys immunity from criminal proceedings during his term of office. No criminal proceedings whatsoever shall be instituted or continued against a Governor in any court during his term of office. Additionally, no court shall issue any process for the arrest or imprisonment of a Governor during his term. However, civil proceedings may be initiated against a Governor after giving two months prior notice, which distinguishes his immunity from that of the President who enjoys absolute immunity from civil proceedings as well during his term.

Q 88. Ans. A

Explanation:

- **Statement 1 is correct:** The principle of collective responsibility as embodied in Article 75(3) of the Constitution implies that all ministers are jointly and collectively responsible to the Lok Sabha for all acts of commission as well as omission in the conduct of the government. This means that the Council of Ministers as a body owns responsibility for every decision taken and every action or inaction of the government, and no minister can publicly dissociate himself from a Cabinet decision once it has been taken.
- **Statement 2 is correct:** The principle of collective responsibility means that all ministers swim and

sink together. If a vote of no confidence is passed against even one minister or against the Council of Ministers as a whole, the entire Council of Ministers including the Prime Minister is obliged to resign from office. The ministry stands and falls as a united body, and the defeat of the government on any vital issue in the Lok Sabha is treated as a loss of confidence in the entire ministry, necessitating the resignation of all ministers collectively.

- **Statement 3 is incorrect:** Cabinet decisions bind not only Cabinet Ministers but all members of the Council of Ministers including Ministers of State and Deputy Ministers. Every minister, regardless of his rank or tier in the ministerial hierarchy, is bound by the decisions taken by the Cabinet. If any minister disagrees with a Cabinet decision, he has only two options available to him, which are either to accept the decision and abide by it or to resign from the Council of Ministers. He cannot publicly oppose or criticise a Cabinet decision while continuing to remain a member of the Council of Ministers.

Q 89. Ans. C

Explanation:

- **Statement 1 is correct:** One-third of the total membership of the Legislative Council is elected by the members of local bodies such as municipalities, district boards, and other local authorities in the state. This category of election ensures that representatives of local self-government institutions have a voice in the upper house of the state legislature, thereby strengthening the federal and democratic character of the legislative framework at the state level.
- **Statement 2 is correct:** One-twelfth of the total membership of the Legislative Council is elected by graduates of three years standing who are residing in the state. This provision ensures representation of the educated electorate in the upper house and is intended to bring a degree of intellectual and academic perspective into the deliberations of the Legislative Council.
- Article 171 of the Constitution lays down the full composition of the Legislative Council. According to this provision, the total membership of the Legislative Council of a state is divided as follows. One-third of the members are elected by the members of local bodies. One-twelfth are elected by graduates of three years standing. One-twelfth are elected by teachers of three years standing in

educational institutions not lower than secondary schools. One-third are elected by the members of the Legislative Assembly of the state. The remaining one-sixth are nominated by the Governor from persons having special knowledge or practical experience in literature, science, art, cooperative movement, and social service. This diverse composition of the Legislative Council distinguishes it significantly from the Legislative Assembly, which is entirely directly elected by the people.

Q 90. Ans. C

Explanation:

- The Governor of the state has no power to create or abolish a Legislative Council. The Governor is a constitutional head of the state executive and acts on the aid and advice of the Council of Ministers. The creation or abolition of a Legislative Council is a constitutional matter that lies entirely outside the scope of the Governor's powers and functions.
- The Legislative Assembly of the state alone cannot create or abolish a Legislative Council. However, the Legislative Assembly plays an important initiatory role in the process. Under Article 169 of the Constitution, the process can be set in motion only when the Legislative Assembly of the concerned state passes a resolution to that effect by a special majority, that is, a majority of the total membership of the assembly as well as a majority of not less than two-thirds of the members of the assembly present and voting.
- Parliament is the correct answer. Under Article 169 of the Constitution, Parliament has the power to create or abolish a Legislative Council in a state by passing a law to that effect. However, Parliament can exercise this power only after the concerned State Legislative Assembly has passed a resolution requesting Parliament to do so by the requisite special majority. Such a law passed by Parliament is not deemed to be an amendment of the Constitution under Article 368 and can therefore be passed by a simple majority.
- The President of India has no independent power to create or abolish a Legislative Council. His role is limited to giving his assent to the bill passed by Parliament for this purpose, without which it cannot become law.
- It is pertinent to note that the creation or abolition of a Legislative Council is thus a joint exercise involving both the State Legislative Assembly and Parliament, with the Assembly initiating the

process through a special majority resolution and Parliament giving it legal effect through legislation under Article 169 of the Constitution.

Q 91. Ans. D

Explanation:

- **Pair 1 is correctly matched:** The minimum strength of a State Legislative Assembly is 60 members. However, there are exceptions to this rule in the case of smaller states. For instance, the Legislative Assemblies of certain smaller states like Goa, Sikkim, Mizoram, and Arunachal Pradesh have been permitted to have a membership of less than 60 by special provisions made in that behalf.
- **Pair 2 is correctly matched:** The maximum strength of a State Legislative Assembly is 500 members. The actual strength of each state assembly is determined by the Delimitation Commission on the basis of the population of the state. No state assembly can exceed this constitutionally prescribed maximum limit of 500 members regardless of its population size.
- **Pair 3 is correctly matched:** The maximum strength of the Legislative Council of a state cannot exceed one-third of the total membership of the State Legislative Assembly. This provision ensures that the upper house always remains smaller than the lower house in terms of its total membership, thereby preserving the dominant position of the directly elected Legislative Assembly over the indirectly constituted Legislative Council.
- **Pair 4 is correctly matched:** The minimum strength of the Legislative Council is fixed at 40 members regardless of the size of the state or the strength of its Legislative Assembly. This minimum threshold ensures that the Legislative Council remains a viable and functioning body capable of meaningfully contributing to the legislative process of the state.
- Article 170 of the Constitution deals with the composition of the Legislative Assembly while Article 171 deals with the composition of the Legislative Council. Together these provisions establish the constitutional framework within which each state determines the actual strength of its respective legislative chambers, subject to the maximum and minimum limits prescribed therein.

Q 92. Ans. C

Explanation:

- **Pair 1 is correctly matched:** Article 164(1A) of the Constitution provides that the total number

of ministers including the Chief Minister in the Council of Ministers of a state shall not exceed 15 percent of the total strength of the Legislative Assembly of that state. This ceiling was imposed to prevent the practice of creating oversized ministries for political considerations at the cost of public resources.

- **Pair 2 is correctly matched:** Article 164(1A) also provides that notwithstanding the 15 percent ceiling, the number of ministers including the Chief Minister in a state shall not be less than 12. This minimum limit ensures that the Council of Ministers has a sufficient number of members to effectively carry out the administrative responsibilities of the state government.
- **Pair 3 is correctly matched:** The provision prescribing the maximum limit of 15 percent and the minimum limit of 12 ministers was inserted into the Constitution by the 91st Constitutional Amendment Act of 2003. This amendment was enacted in the context of the recommendations made to curb the problem of political defections and to bring about a degree of austerity in the size of governments at both the Union and state levels.
- **Pair 4 is incorrectly matched:** The exemption from the ceiling on the size of the Council of Ministers is not extended to states with a population below one million. The correct position is that the said provision does not apply to a state where the total membership of the Legislative Assembly of that state does not exceed 40 members. This exemption covers smaller states such as Sikkim where the assembly strength itself is below the prescribed threshold, making the percentage based ceiling impractical to apply.

Q 93. Ans. A

Explanation:

- Article 163 corresponds to option 4, that is, the Council of Ministers to aid and advise the Governor. This article provides that there shall be a Council of Ministers with the Chief Minister at the head to aid and advise the Governor in the exercise of his functions, except in so far as he is required by the Constitution to exercise his functions in his discretion. It also provides that the question of whether any matter falls within the Governor's discretion shall not be inquired into by any court.
- Article 164 corresponds to option 3, that is, other provisions as to Ministers. This article lays down various provisions relating to ministers including

that the Chief Minister shall be appointed by the Governor and other ministers shall be appointed by the Governor on the advice of the Chief Minister. It also provides that ministers shall hold office during the pleasure of the Governor, that the Council of Ministers shall be collectively responsible to the Legislative Assembly, and that a minister who is not a member of the state legislature for a period of six consecutive months shall cease to be a minister.

- Article 166 corresponds to option 2, that is, the conduct of business of the Government of a State. This article provides that all executive action of the Government of a state shall be expressed to be taken in the name of the Governor. It also authorises the Governor to make rules for the more convenient transaction of the business of the state government and for the allocation of business among the ministers.
- Article 167 corresponds to option 1, that is, the duties of the Chief Minister regarding the furnishing of information to the Governor. This article imposes three specific duties on the Chief Minister. He is required to communicate to the Governor all decisions of the Council of Ministers relating to the administration of the affairs of the state and proposals for legislation. He must furnish such information relating to the administration of the state as the Governor may call for. And if the Governor so requires, he must submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a minister but which has not been considered by the Council.

Q 94. Ans. C

Explanation:

- **Assertion (A) is true:** Under Article 164 of the Constitution, the Chief Minister holds office during the pleasure of the Governor. This is the formal constitutional position as expressed in the text of the Constitution itself. However, this provision must be read in conjunction with the other provisions of the Constitution relating to the parliamentary form of government and the principle of collective responsibility, which together qualify the practical operation of this rule in a significant manner.
- **Reason (R) is false:** Although Article 164 states that the Chief Minister holds office during the pleasure of the Governor, this does not mean that the Governor can dismiss the Chief Minister at any time and at his own will. In practice, as long as the

Chief Minister commands a majority in the State Legislative Assembly, the Governor cannot dismiss him. The Governor can ask the Chief Minister to prove his majority on the floor of the House if there is a reasonable doubt about it, but he cannot arbitrarily remove a Chief Minister who enjoys the confidence of the majority of the members of the assembly. The Governor can dismiss the Chief Minister only in the exceptional circumstance where the Chief Minister has lost the confidence of the Legislative Assembly but refuses to resign. Thus the pleasure of the Governor is not an unfettered or arbitrary power but is subject to the fundamental principle of parliamentary democracy that the executive must retain the confidence of the elected legislature to continue in office.

- The position of the Chief Minister in relation to the Governor is therefore analogous to the position of the Prime Minister in relation to the President at the Centre. Just as the President cannot dismiss the Prime Minister so long as he commands a majority in the Lok Sabha, the Governor cannot dismiss the Chief Minister so long as he enjoys the confidence of the State Legislative Assembly.

Q 95. Ans. D

Explanation:

- **Statement 1 is correct:** The reservation of a bill for the consideration of the President under Article 200 of the Constitution is a discretionary power of the Governor. The Governor may exercise this power at his own discretion and is not bound by the advice of the Council of Ministers in deciding whether to reserve a particular bill for the President's consideration. This is one of the most significant discretionary powers available to the Governor in the legislative sphere.
- **Statement 2 is correct:** The recommendation for the imposition of President's Rule in the state under Article 356 is also a discretionary power of the Governor. When the Governor is satisfied that the constitutional machinery in the state has broken down or that the government of the state cannot be carried on in accordance with the provisions of the Constitution, he can send a report to the President recommending the imposition of President's Rule. This power is exercised entirely at the Governor's own discretion and is not subject to ministerial advice.
- **Statement 3 is correct:** The Governor's right to seek information from the Chief Minister regarding the

administrative affairs of the state and proposals for legislation under Article 167 is also exercised at the Governor's own discretion. The Governor can independently call for such information without the aid or advice of the Council of Ministers, making it a discretionary function. The Chief Minister is constitutionally obligated to furnish such information as and when the Governor demands it.

- **Statement 4 is correct:** The dissolution of the State Legislative Assembly when the ministry has lost its majority is also a discretionary power of the Governor. If the Chief Minister advises dissolution after losing the confidence of the assembly with a view to avoid a floor test, the Governor is not bound to accept such advice. He can exercise his discretion in deciding whether to dissolve the assembly or to explore the possibility of forming an alternative government. This discretionary power enables the Governor to act as a safeguard against the misuse of constitutional provisions by a ministry that has ceased to enjoy majority support.

Q 96. Ans. A

Explanation:

- **Statement 1 is correct:** One of the conditions of the Governor's office is that he should not be a member of either House of Parliament or of a House of the state legislature. If a person who is a member of Parliament or of a state legislature is appointed as the Governor of a state, he is deemed to have vacated his seat in that legislature on the date on which he enters upon his office as Governor. This condition ensures that the Governor does not simultaneously hold a legislative position and a constitutional executive position.
- **Statement 2 is incorrect:** The emoluments, allowances, and privileges of the Governor are not determined by the state legislature but are determined by Parliament. This is an important distinction because determining the Governor's emoluments through the state legislature would compromise his independence and impartiality, as the state legislature is accountable to the very government over which the Governor is expected to exercise a supervisory role. The emoluments and allowances of the Governor are charged to the Consolidated Fund of the State and cannot be put to vote in the state legislature. Furthermore, the emoluments of the Governor cannot be diminished during his term of office, which is a constitutional safeguard designed to protect the independence of

the office from financial pressures or interference by the state government.

- The conditions of the Governor's office as laid down in the Constitution also include that he must not hold any other office of profit, that he is entitled to use his official residence, the Raj Bhavan, without payment of rent, and that his emoluments and allowances cannot be varied to his disadvantage after his appointment.

Q 97. Ans. B

Explanation:

- **Statement 1 is incorrect:** The Constitution does not provide for direct enforcement of Fundamental Duties by courts. Unlike Fundamental Rights, which are justiciable and can be enforced through the courts, Fundamental Duties are non-justiciable in nature. There is no legal sanction provided in the Constitution itself for the violation of any of the duties enumerated under Article 51A. A person cannot be directly penalised by a court merely for failing to perform a Fundamental Duty as no such mechanism exists within the constitutional text itself.
- **Statement 2 is correct:** Although the Fundamental Duties are not directly enforceable by courts on their own, Parliament is competent to enforce them by enacting suitable legislation. If Parliament passes a law to enforce any of the Fundamental Duties, such a law cannot be challenged as unconstitutional merely on the ground that it imposes obligations on citizens. The Supreme Court has also observed that in determining the constitutionality of a law, if a statute is found to give effect to a Fundamental Duty, it can be used as an aid to uphold its validity.
- The Fundamental Duties were inserted in Part IVA of the Constitution by the 42nd Constitutional Amendment Act of 1976 on the recommendation of the Swaran Singh Committee. Originally ten in number, a new duty was added by the 86th Constitutional Amendment Act of 2002, bringing the total to eleven. Like the Directive Principles of State Policy contained in Part IV, the Fundamental Duties are also non-justiciable in character. However, they serve as a moral code of conduct for the citizens and act as a constant reminder that while the Constitution confers Fundamental Rights upon the citizens, it also expects them to perform certain basic duties towards the nation, society, and fellow citizens.

Q 98. Ans. D

Explanation:

- **Statement 1 is correct:** The Prime Minister plays a central role in the formation of the Council of Ministers. The President appoints only those persons as ministers who are recommended by the Prime Minister. This power gives the Prime Minister complete authority over the composition of his ministry, as the President cannot appoint anyone as a minister without the recommendation of the Prime Minister.
- **Statement 2 is correct:** The Prime Minister has the exclusive power to allocate portfolios among the ministers as well as to reshuffle them whenever he considers it necessary. He can transfer ministers from one portfolio to another or relieve them of certain responsibilities and assign new ones. This power makes the Prime Minister the undisputed head of the Council of Ministers in terms of administrative organisation and management.
- **Statement 3 is correct:** The Prime Minister exercises overriding authority over the continuance of ministers in office. He can ask any minister to resign from the Council of Ministers if he loses confidence in him. If a minister refuses to resign, the Prime Minister can advise the President to dismiss him. Since the President acts on the advice of the Prime Minister in such matters, this power effectively enables the Prime Minister to remove any minister at will, thereby ensuring complete control over the composition of his cabinet.
- **Statement 4 is correct:** The Prime Minister presides over the meetings of the Cabinet and the Council of Ministers. He determines the agenda for Cabinet meetings, guides the deliberations, and steers the decision making process. His position as the chairman of the Cabinet makes him the pivot around which the entire machinery of the Union executive revolves. As the head of the Cabinet, he coordinates the activities of all ministers and ensures that the government functions as a cohesive unit.

Q 99. Ans. C

Explanation:

- The Constitution of India mandates a strict procedural framework for the assumption of executive offices. Before entering upon their office, every Governor, as well as any person discharging the functions of the Governor, is constitutionally required to make and subscribe to an oath or affirmation.

- This oath of office is administered by the Chief Justice of the concerned state High Court. The rationale behind this provision is to ensure that the swearing-in of the state's highest executive authority is overseen by the highest judicial authority within that same state, thereby upholding the separation of powers and the constitutional dignity of the office.
- In the event that the Chief Justice of the High Court is absent, unavailable, or the office is vacant, the constitutional duty to administer the oath automatically delegates to the senior-most judge of that particular High Court who is available at the time. During this ceremony, the Governor explicitly swears to faithfully execute the office, to preserve, protect, and defend the Constitution and the law, and to devote themselves entirely to the service and well-being of the people of the state.

Q 100. Ans. C

Explanation:

- **Substantive Motion** is a self-contained independent proposal submitted for the approval of the House and drafted in such a way as to be capable of expressing a definitive decision of the legislature. It deals with highly significant constitutional and parliamentary matters, such as the impeachment of the President, the removal of the Chief Election Commissioner, or the introduction of a no-confidence motion. Because of its foundational nature, it does not depend on any other proceeding for its validity.
- **Substitute Motion** is a motion introduced as a direct alternative to an original motion currently before the House. It is moved in substitution of the primary proposal and presents a different approach or a distinct framework regarding the same subject matter. If a substitute motion is successfully adopted by the majority of the House, it supersedes the original motion entirely, effectively replacing the initial proposal.
- **Subsidiary Motion** is a procedural mechanism that, by itself, holds no independent meaning and cannot articulate a substantive decision of the House without direct reference to the original motion or the ongoing legislative proceedings. It is inherently dependent on other motions and is typically used to manage, delay, amend, or modify the primary business being discussed on the floor.
- **Resolution** is a formal expression of the opinion, recommendation, or will of the legislative body regarding matters of general public interest.

While all resolutions structurally fall under the broader category of substantive motions, a strict parliamentary rule dictates that a resolution must be put to a vote in its entirety. It cannot be bifurcated, fragmented, or voted upon in parts, ensuring that the House expresses a unified and holistic stance on the matter at hand.

Q 101. Ans. A

Explanation:

- **Assertion (A) is true:** The Committee on Public Undertakings, functioning as a crucial financial committee of the Parliament, operates under specific jurisdictional limitations designed to prevent legislative overreach into executive domains. One of its primary restrictions is that it is expressly prohibited from examining matters of major government policy that are distinct from the everyday business or commercial functions of public enterprises. For instance, it cannot investigate the broader socio-economic rationales, pricing controls mandated by the state, or the foundational macroeconomic policy objectives driving the establishment of a particular public undertaking.
- **Reason (R) is true and is the correct explanation of (A):** The overarching mandate and terms of reference of the Committee are specifically delineated to focus entirely on the operational and financial health of public corporations. Its core duty is to scrutinize the reports and accounts of public undertakings, alongside the relevant audit reports of the Comptroller and Auditor General (CAG), to determine whether these entities are being managed in accordance with sound business principles and prudent commercial practices. Because its fundamental purpose is strictly analytical and commercial, evaluating financial efficiency, productivity, and waste prevention, it is logically and legally precluded from delving into the executive domain of major policy formulation. Consequently, this strict legislative limitation to business and commercial oversight directly explains why the committee inherently lacks the jurisdiction to evaluate or question major governmental policies.

Q 102. Ans. A

Explanation:

- **Statement 1 is correct:** Parliamentary Forums are fundamentally designed to serve as an

institutionalized and dedicated platform for Members of Parliament. This structural setup facilitates structured, meaningful, and in-depth interactions with subject matter experts, key government officials, and respective nodal ministers, thereby enriching the members' understanding of highly complex or technical issues outside the immediate pressures of the legislative floor.

- **Statement 2 is incorrect:** While the Speaker of the Lok Sabha holds a prominent leadership role across these forums, they are not the President of all of them. Specifically, in the case of the Parliamentary Forum on Population and Public Health, the Chairman of the Rajya Sabha serves as the ex-officio President, while the Speaker of the Lok Sabha functions as the Co-President. For all other forums, such as those on Water Conservation, Youth, or Children, the Speaker of the Lok Sabha serves as the President.
- **Statement 3 is correct:** A primary and explicitly stated objective of these forums is to systematically sensitize parliamentarians about critical and emerging areas of serious national or global concern. By focusing on targeted, critical issues—like disaster management, global warming, and demographic challenges—the forums ensure that members are acutely aware of the nuanced dimensions of these problems, fostering a more informed and responsive legislative body.
- **Statement 4 is correct:** To empower members for effective legislative functioning, these forums undertake the crucial task of compiling and preparing meaningful, evidence-based data banks and resource materials. By providing members with well-researched information, updated statistical data, and expert analyses on relevant subjects, the forums actively equip them to participate more robustly, intelligently, and constructively in parliamentary debates and discussions within the House.

Q 103. Ans. D

Explanation:

- **Statement 1 is correct:** When an Ordinary Bill passed by the Legislative Assembly is transmitted to the Legislative Council, the Council can delay the bill for a maximum period of three months at the first instance. During this period, the Council may pass the bill with or without amendments, reject it outright, or simply not pass it within the stipulated three months. In all these cases except when the bill is passed without amendments, the bill is returned to or reconsidered by the Legislative Assembly.

- **Statement 2 is correct:** If the Legislative Assembly passes the bill again after reconsideration and transmits it once more to the Legislative Council, the Council can further delay the bill for a maximum period of one month at the second instance. If the Council rejects the bill again, passes it with amendments not acceptable to the Assembly, or does not pass it within one month, the bill is deemed to have been passed by both Houses in the form in which it was passed by the Assembly for the second time.
- **Statement 3 is correct:** The total period for which the Legislative Council can delay or prevent an Ordinary Bill from becoming law is four months, comprising three months at the first instance and one month at the second instance. Beyond this total period, the will of the directly elected Legislative Assembly prevails and the bill is deemed to have been passed by both Houses.
- **Statement 4 is incorrect:** There is no provision in the Constitution for a joint sitting of the two Houses of the state legislature to resolve disagreements over an Ordinary Bill. The mechanism of joint sitting exists only at the Centre under Article 108 of the Constitution for resolving deadlocks between the Lok Sabha and the Rajya Sabha. No such provision has been made for state legislatures precisely because the Legislative Assembly enjoys overriding powers over the Legislative Council, rendering the joint sitting mechanism unnecessary at the state level.

Q 104. Ans. C

Explanation:

- **Statement 1 is correct:** The institutionalization of ethical oversight within the Indian Parliament occurred in distinct phases across the two chambers. Recognizing the growing necessity to maintain the moral and ethical standards of legislative proceedings, the Ethics Committee was first formally constituted in the Rajya Sabha (the Upper House) in the year 1997. Following this precedent and acknowledging a similar requirement for the Lower House, the Ethics Committee was subsequently established in the Lok Sabha in the year 2000, thereby completing the structural framework for ethical governance across both houses of the legislature.
- **Statement 2 is correct:** The fundamental mandate of the Ethics Committee is to oversee and meticulously enforce the comprehensive code of

conduct applicable to the Members of Parliament. It functions as an internal disciplinary and investigative mechanism, tasked with examining instances of alleged moral turpitude, unethical behavior, or professional misconduct exhibited by parliamentarians. Upon conducting thorough and impartial investigations into complaints or suo motu inquiries, the committee is empowered to recommend appropriate disciplinary actions, thereby acting as a crucial safeguard to preserve the dignity, decorum, and overarching institutional integrity of the parliamentary system.

Q 105. Ans. A

Explanation:

- **Statement 1 is correct:** Under **Article 165**, the Governor appoints the **Advocate General of the state**. He holds office during the pleasure of the Governor.
- **Statement 2 is correct:** Under **Article 243K**, the Governor appoints the **State Election Commissioner**. Once appointed, he can only be removed in the same manner as a judge of the High Court, ensuring his independence.
- **Statement 3 is incorrect:** While the Governor appoints the Chairman and members of the **State Public Service Commission**, he does **not have the power to remove** the Chairman. The Chairman can be removed only by the **President of India** on the grounds specified in the Constitution. This is a deliberate constitutional safeguard to protect the independence of the State Public Service Commission from the state executive.

Q 106. Ans. D

Explanation:

- **Pair 1 is correctly matched:** The Business Advisory Committee functions as the primary scheduling and managerial body within the legislature. It is entrusted with the critical responsibility of regulating the program and formulating the detailed timetable of the House. By systematically allocating time for the transaction of government legislative business and other matters brought before the House, it ensures that parliamentary sessions are conducted efficiently, maximizing the utilization of available time for the deliberation of paramount national issues.
- **Pair 2 is correctly matched:** The Committee on Private Members' Bills and Resolutions exercises specialized oversight regarding legislative

initiatives introduced by members of Parliament who do not hold ministerial rank. Its core function is to meticulously classify these private members' bills based on their nature, urgency, and legislative significance, subsequently allocating dedicated time for their discussion. Notably, this specific committee operates exclusively within the Lok Sabha, as the Rajya Sabha delegates this scheduling function directly to its own Business Advisory Committee.

- **Pair 3 is correctly matched:** The Rules Committee serves as the foundational institutional mechanism for overseeing the procedural framework of the legislature. It is specifically mandated to consider all matters related to parliamentary procedure and the overarching conduct of business within the chamber. Furthermore, it proactively recommends necessary amendments or strategic additions to the existing Rules of Procedure, ensuring that the legislative machinery remains adaptable, modern, and capable of handling increasingly complex parliamentary dynamics.
- **Pair 4 is correctly matched:** The Committee on Government Assurances acts as a vital tool for enforcing the continuous accountability of the executive branch to the legislature. During the dynamic flow of parliamentary debates, ministers frequently make formal commitments, promises, or assurances on the floor of the House. This committee rigorously tracks these ministerial undertakings, examines the extent to which they have been substantively implemented, and determines whether such implementation occurred within the stipulated or a reasonable timeframe, thereby precluding administrative evasion.

Q 107. Ans. D

Explanation:

- **Assertion (A) is false:** The institutional responsibility of recommending whether a specific government appointment or office ought to disqualify an individual from being a Member of Parliament does not reside with the Committee on Public Undertakings. The Committee on Public Undertakings is strictly a financial committee entrusted with the mandate to scrutinize the reports, accounts, and overall commercial efficiency of public sector enterprises. Instead, the critical parliamentary duty of examining the composition and character of various committees, commissions, and bodies appointed by the

executive, and subsequently determining if holding membership or an office in them constitutes a disqualifying condition, is vested exclusively in the Joint Committee on Offices of Profit.

- **Reason (R) is true:** While the Constitution of India categorically stipulates that holding an “office of profit” under the Government of India or the government of any state serves as a fundamental ground for disqualification from membership in Parliament or a state legislature, it deliberately refrains from explicitly defining the phrase itself. The absence of a strict constitutional definition means that the conceptual parameters of an “office of profit” have been progressively delineated through established parliamentary conventions and extensive judicial interpretations by the Supreme Court of India. To mitigate legal and electoral ambiguity, the Parliament periodically enacts specific statutory legislation, such as the Parliament (Prevention of Disqualification) Act, to categorically declare that certain designated offices will not subject their holders to disqualification.

Q 108. Ans. D

Explanation:

- **Statement 1 is correct:** The Estimates Committee holds the distinction of being the largest standing parliamentary committee within the Indian legislative system. While it was originally constituted in the post-independence era with twenty-five members, its membership was deliberately expanded in 1956 to comprise exactly thirty members. This expansion was designed to facilitate a more comprehensive, detailed, and expansive scrutiny of the government’s financial allocations and administrative operations.
- **Statement 2 is correct:** A defining structural characteristic of this financial committee is its exclusive composition. All thirty members are elected solely from the Lok Sabha, utilizing the principle of proportional representation by means of a single transferable vote to ensure all parties are adequately represented. The Rajya Sabha has absolutely no representation on this committee, a constitutional design that underscores and reinforces the Lok Sabha’s preeminent authority and exclusive jurisdiction over national financial matters and the public exchequer.
- **Statement 3 is correct:** The core functional mandate of the committee is to meticulously examine the detailed financial estimates embedded within the

annual budget. Often characterized by political scientists as a “continuous economy committee,” it rigorously reviews proposed public expenditure to suggest alternative policies, administrative reforms, and structural improvements. Its overarching goal is to bring about operational efficiency, prevent systemic waste, and ensure that the government achieves maximum economies in its administrative execution.

- **Statement 4 is correct:** Parliamentary convention and the established rules of procedure dictate a specific and unyielding leadership framework for this financial watchdog. The Chairman of the Estimates Committee is appointed directly by the Speaker of the Lok Sabha from amongst its elected members. Furthermore, this pivotal leadership position is invariably assigned to a representative belonging to the ruling party, establishing a distinct contrast with the Public Accounts Committee, where the chairmanship is traditionally reserved for a member of the opposition.

Q 109. Ans. A

Explanation:

- **Statement 1 is correct:** The Public Accounts Committee functions as one of the oldest and most critical standing financial committees of the Parliament, originally established in 1921 under the provisions of the Government of India Act of 1919. It maintains a bicameral representative framework, consisting of exactly 22 members. Of these, 15 members are meticulously elected from the Lok Sabha, while the remaining 7 members are drawn from the Rajya Sabha. The members are elected by the Parliament every year from amongst its members according to the principle of proportional representation by means of the single transferable vote, ensuring that all major parties secure proportional representation.
- **Statement 2 is correct:** A foundational parliamentary principle governing the architecture of financial committees is the absolute exclusion of the executive from their membership to guarantee unbiased, rigorous scrutiny. Consequently, a minister is explicitly barred from being elected or nominated as a member of the Public Accounts Committee. If a sitting member of the committee is subsequently elevated to a ministerial position, they automatically and immediately cease to hold their position on the committee. This structural separation is vital to preserve the uncompromised

independence of the legislative auditing process over government expenditure.

- **Statement 3 is incorrect:** While the chairman of the committee is invariably appointed by the Speaker of the Lok Sabha from amongst its elected members, the prevailing convention regarding their political affiliation has undergone a definitive historical shift. Until the year 1966–67, the chairman of the committee consistently belonged to the ruling party. However, since 1967, a robust and unbroken parliamentary convention was instituted whereby the chairman of the Public Accounts Committee is invariably selected from the principal opposition party. This deliberate institutional practice ensures a highly critical, impartial, and adversarial examination of executive financial conduct and the audit reports submitted by the Comptroller and Auditor General (CAG).

Q 110. Ans. C

Explanation:

- The Constitution of India makes a clear and deliberate distinction between expenditure “charged upon” the Consolidated Fund of India and expenditure “made from” the Consolidated Fund of India. Expenditure charged upon the fund is non-votable by Parliament, meaning it can only be discussed, a safeguard implemented to ensure the financial independence of key constitutional offices from political interference.
- The salary and allowances of High Court judges are not charged on the Consolidated Fund of India; instead, they are charged directly on the Consolidated Fund of the respective State where the judge is serving. Because a High Court functions as the highest judicial body within a state’s territory, its administrative expenses, including the salaries, allowances, and perquisites of its judges, are borne entirely by that state’s exchequer to maintain judicial autonomy at the provincial level.
- In contrast, the pensions of High Court judges are explicitly charged on the Consolidated Fund of India. This unique constitutional arrangement was designed because a High Court judge may serve across multiple states throughout their career due to transfers, making it administratively complex and unfair to burden any single state with their lifetime retirement benefits. To streamline this, the Union government centralizes and secures their pensions through the national exchequer. Similarly, the salaries, allowances, and pensions of

the President of India and Supreme Court judges are centrally charged on the Consolidated Fund of India, reflecting their status as top-tier federal and national constitutional authorities.

Q 111. Ans. A

Explanation:

- **Pair 1 is correctly matched:** A Policy Cut Motion represents the strongest and most definitive form of parliamentary disapproval regarding the underlying principles of a specific demand for grant presented by the executive. When a member moves this motion, they are fundamentally rejecting the government’s proposed policy framework in its entirety. To signify this complete rejection, the motion explicitly states that the total amount of the demand be reduced to exactly Re. 1. During the ensuing debate, the member is permitted to advocate for an alternative policy, making it a critical tool for robust legislative opposition.
- **Pair 2 is correctly matched:** An Economy Cut Motion is primarily focused on bringing about strict financial prudence, waste reduction, and operational economy within the proposed governmental expenditure. It does not necessarily reject the underlying policy but rather argues that the administrative objectives can be effectively achieved with a substantially lower financial outlay. This motion explicitly demands that the allocated amount of the demand be reduced by a specific, quantifiable sum. This proposed reduction could manifest as a lump-sum deduction, the total omission of a particular item from the budget, or a targeted reduction in a specific departmental allocation.
- **Pair 3 is correctly matched:** A Token Cut Motion serves as a highly precise parliamentary instrument utilized to ventilate a specific, localized, or particular grievance that falls squarely within the administrative jurisdiction and responsibility of the Government of India. It is not intended to cripple the budget financially but rather to draw the executive’s immediate, focused attention to a specific failure, oversight, or public concern. To symbolize this formal protest, the motion legally mandates that the amount of the demand be reduced by a nominal, symbolic figure of exactly Rs. 100.
- **Pair 4 is incorrectly matched:** The concept of a “Guillotine Cut” does not exist as a type of cut motion within established parliamentary procedure. Instead, the “Guillotine” is a strict procedural mechanism employed by the Speaker

of the Lok Sabha on the final day allotted for the discussion and voting of demands for grants. When the allotted parliamentary time expires, the Speaker abruptly concludes all ongoing debates and puts all the remaining, outstanding demands to a vote simultaneously, irrespective of whether they have been thoroughly discussed or debated by the House, to ensure the timely legislative passage of the annual budget. It is the Policy Cut Motion, not a guillotine mechanism, that seeks to reduce a demand to one rupee.

Q 112. Ans. A

Explanation:

- **Statement 1 is correct:** The parliamentary financial framework recognizes that the executive branch may occasionally confront unprecedented, unforeseeable national emergencies or urgent situational crises that necessitate immediate and substantial financial mobilization. A vote of credit is a unique constitutional provision specifically granted by the Lok Sabha to meet such an unexpected demand upon the consolidated resources of India. This mechanism is utilized when, due to the overwhelming magnitude of the requirement or the highly indefinite, evolving character of the service needed, the demand cannot be structurally articulated with the standard itemized details and precise estimates ordinarily required in the Annual Financial Statement (budget). Because it delegates broad, generalized financial authority without mandating immediate, detailed expenditure breakdowns, it is frequently characterized in parliamentary practice as the equivalent of a blank cheque granted by the legislature to the executive.
- **Statement 2 is incorrect:** The fundamental defining characteristic of an exceptional grant is its complete and deliberate detachment from the regular, ongoing administrative functions and routine operational commitments of the state. It is an extraordinary allocation granted exclusively for a highly specific, localized, or special purpose that arises entirely outside the normal scope of governmental operations. By strict constitutional and procedural definition, an exceptional grant forms absolutely no part of the current service of any financial year. This rigid separation ensures that extraordinary, isolated, or one-time expenditures do not permanently inflate, obscure, or distort the baseline budgetary allocations established for the government's ordinary, routine administrative services.

Q 113. Ans. A

Explanation:

- **Assertion (A) is true:** The constitutional mechanism of a joint sitting of both Houses of Parliament, summoned by the President of India to resolve a legislative deadlock, is strictly restricted to ordinary bills and specific categories of financial bills. The Constitution categorically prohibits the application of the joint sitting provision to Money Bills. A similar prohibition applies to Constitution Amendment Bills, which must be passed by each House separately with the requisite special majority.
- **Reason (R) is true and is the correct explanation of (A):** The constitutional necessity of convening a joint sitting inherently relies on the existence of an irreconcilable disagreement or legislative deadlock between the two Houses. However, in the context of a Money Bill, such a deadlock is structurally and constitutionally impossible. The constitutional framework deliberately vests the Lok Sabha with exclusive, absolute, and overriding powers concerning Money Bills, cementing the democratic principle that the chamber directly elected by the populace must hold supreme authority over national taxation and the public exchequer.

Q 114. Ans. D

Explanation:

- **Statement 1 is correct:** Financial Bills of Class I are distinct legislative instruments that encompass not only any or all of the matters specifically enumerated in Article 110 of the Constitution (which rigidly defines Money Bills) but also comprehensively contain clauses pertaining to matters of general legislation. For instance, a bill that introduces a specific taxation or borrowing clause but simultaneously establishes a broader administrative or regulatory framework would fall precisely under this category, acting as a hybrid between strict financial measures and ordinary lawmaking.
- **Statement 2 is correct:** In a manner structurally identical to Money Bills, Financial Bills (I) are subject to stringent constitutional limitations regarding their legislative origin. They can only be introduced in the Lok Sabha, the popularly elected lower chamber, and are constitutionally barred from being initiated in the Rajya Sabha. Furthermore, the introduction of such a bill strictly requires the prior formal recommendation of the President of

India, thereby affirming the executive branch's constitutional prerogative over initiating substantial financial and revenue-oriented proposals.

- **Statement 3 is correct:** Financial Bills of Class II, explicitly defined under Article 117(3) of the Constitution, represent a different legislative tier. They contain provisions involving significant expenditure from the Consolidated Fund of India but strictly do not include any of the core financial matters specified in Article 110. Because they do not propose the levying of taxes or deal with foundational Money Bill subjects, they are procedurally treated as ordinary bills during the introduction phase. Consequently, they can be introduced in either the Lok Sabha or the Rajya Sabha, and their initial introduction does not necessitate the prior recommendation of the President.
- **Statement 4 is correct:** Despite the foundational differences in their introduction procedures, once both Financial Bills (I) and Financial Bills (II) are successfully introduced and enter the deliberative phase, they are governed almost entirely by the standard legislative procedures applicable to ordinary bills. This constitutional equivalency guarantees that the Rajya Sabha possesses the full, unmitigated legislative authority to reject or substantially amend them. Should an irreconcilable legislative deadlock arise between the two Houses regarding these amendments, the President is constitutionally empowered to summon a joint sitting of both Houses to deliberate upon and definitively resolve the disagreement.

Q 115. Ans. A

Explanation:

- **Statement 1 is correct:** The Constitution of India establishes a deliberate bicameral asymmetry regarding financial legislation, vesting absolute supremacy in the Lok Sabha. When a Money Bill, having been successfully passed by the lower chamber, is transmitted to the Rajya Sabha for consideration, the Upper House is structurally deprived of substantive legislative powers. It possesses absolutely no constitutional authority to either reject the Money Bill outright or to make any binding amendments to its statutory provisions. This architectural restriction guarantees that the legislative body directly elected by the citizens retains ultimate, unimpeded control over national taxation and public expenditure.
- **Statement 2 is correct:** To prevent legislative

stalling and ensure the timely enactment of crucial financial measures, the constitutional framework imposes a strict procedural timeline on the Upper House. Upon receiving a Money Bill, the Rajya Sabha is constitutionally mandated to return the legislative instrument to the Lok Sabha within a rigid maximum period of exactly fourteen days, whether it includes recommendations or not. If the Rajya Sabha fails to return the bill within this stipulated fourteen-day window, the bill is legally deemed to have been passed by both Houses of Parliament in the exact original form in which it was initially passed by the Lok Sabha, thereby neutralizing any potential for deliberate procedural delays.

- **Statement 3 is incorrect:** The fundamentally advisory role of the Rajya Sabha in financial matters is underscored by the non-binding nature of its legislative input. If the Rajya Sabha successfully returns the Money Bill within the fourteen-day period accompanied by suggested amendments or recommendations, the Lok Sabha retains total and absolute sovereign discretion over the final statutory outcome. The Lok Sabha is under no constitutional or procedural obligation to accept these suggestions; it exercises the unfettered right to either accept or completely reject any or all of the recommendations put forth by the Rajya Sabha. Regardless of the Lok Sabha's decision to accept or reject, the bill is subsequently deemed to have been passed by both Houses, unequivocally demonstrating the lower house's overriding and exclusive authority in the financial domain.

Q 116. Ans. A

Explanation:

- **Consolidated Fund of India (a) → Article 266(1) (4):** Under Article 266(1), the Consolidated Fund of India is the most important fund. All revenues received by the Government, all loans raised by the government, and all moneys received in repayment of loans are credited to this fund. No money can be appropriated from this fund except in accordance with law and the appropriation made by Parliament.
- **Public Account of India (b) → Article 266(2) (3):** Under Article 266(2), the Public Account of India consists of all other public moneys received by or on behalf of the Government of India that do not form part of the Consolidated Fund. Examples include provident fund deposits, judicial deposits, and savings bank deposits. Parliamentary authorisation is not required for payments from this account.

- **Contingency Fund of India (c) → Article 267 (2):** Under Article 267, the Contingency Fund of India is placed at the disposal of the **President** to enable advances to be made to meet unforeseen and urgent expenditure pending authorisation of such expenditure by Parliament. The corpus of this fund is **₹500 crore**. Amounts drawn from it must be subsequently authorised by Parliament and the fund is recouped.
- **Vote on Account (d) → Advance grant for estimated expenditure (1):** Vote on Account is a parliamentary device that enables the government to draw money from the Consolidated Fund of India to meet its estimated expenditure for a part of the financial year, pending the passing of the full budget. It is generally granted for **two months** and covers approximately **one-sixth** of the total estimated expenditure.

Q 117. Ans. C

Explanation:

- **Statement 1 is correct:** Under Article 110(3), if any question arises as to whether a Bill is a Money Bill or not, the decision of the **Speaker of the Lok Sabha** shall be final. The Speaker certifies every Money Bill when it is transmitted to the Rajya Sabha and when it is presented to the President for assent.
- **Statement 2 is correct:** The Speaker's decision on whether a bill is a Money Bill is explicitly declared **final** under Article 110(3) and cannot be questioned in any court of law. This makes the Speaker's certification an **unchallengeable constitutional authority** on this matter, placing it beyond the scope of judicial review.
- It is important to note that the **Rajya Sabha** has no power to reject or amend a Money Bill. It can only make recommendations, which the Lok Sabha is not bound to accept. If the Rajya Sabha does not return a Money Bill within **14 days**, it is deemed to have been passed by both Houses.
- The certification by the Speaker also serves a practical purpose of preventing the Rajya Sabha from treating an ordinary Bill as a Money Bill, thereby protecting the Lok Sabha's exclusive financial powers.

Q 118. Ans. B

Explanation:

- **Article 110** provides the precise definition of a Money Bill. It specifies that a Bill is deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters:

- ✓ Imposition, abolition, remission, alteration, or regulation of any tax.
 - ✓ Regulation of the borrowing of money by the Union government.
 - ✓ Custody of the Consolidated Fund or the Contingency Fund of India.
 - ✓ Appropriation of moneys out of the Consolidated Fund of India.
 - ✓ Declaration of any expenditure as expenditure charged upon the Consolidated Fund.
 - ✓ Receipt of money on account of the Consolidated Fund or the public account of India.
 - ✓ Any matter incidental to any of the above matters.
 - ✓ The other options deal with separate subjects:
- **Article 108** deals with the **joint sitting** of both Houses of Parliament.
 - **Article 112** deals with the **Annual Financial Statement** (Budget).
 - **Article 117** deals with special provisions regarding **Financial Bills**, which are distinct from Money Bills.

Q 119. Ans. C

Explanation:

- **Statement 1 is correct:** When a new Lok Sabha is constituted after general elections, the **President of India** appoints a member of the Lok Sabha as the **Speaker Pro Tem**. Usually, the **seniormost member** of the newly elected Lok Sabha is appointed to this position. The President himself administers the oath to the Speaker Pro Tem.
- **Statement 2 is correct:** The primary function of the Speaker Pro Tem is to **administer the oath** to the newly elected members of the Lok Sabha. He presides over the first sitting of the new Lok Sabha until a new Speaker is elected by the members.
- Once the new Speaker is elected by the House, the office of the Speaker Pro Tem **automatically ceases to exist**. It is therefore a temporary position created specifically to facilitate the smooth transition at the commencement of a new Lok Sabha.

Q 120. Ans. B

Explanation:

- The date for the election of the **Speaker of the Lok Sabha** is fixed by the **President of India**. The Speaker is then elected by the members of the Lok Sabha from amongst themselves on that date.
- The election of the Speaker is one of the first acts of a newly constituted Lok Sabha, conducted after

the members have taken their oath. Until the new Speaker is elected, the **Speaker Pro Tem** presides over the proceedings of the House.

- Once elected, the Speaker holds office until the **dissolution of the Lok Sabha**. However, he vacates the office immediately before the first sitting of the newly constituted Lok Sabha, even if he gets re-elected as a member.
- The date for the election of the **Deputy Speaker** is also fixed by the **President of India**, following the same procedure.

Q 121. Ans. D

Explanation:

- **Statement 1 is correct:** A Calling Attention Motion is introduced by a member of Parliament to call the **attention of a minister** to a matter of urgent public importance. It is a formal procedural device to bring an urgent matter to the government's notice.
- **Statement 2 is correct:** Once the attention of the minister is called, the minister is expected to give an **authoritative statement** on the matter. The member who introduced the motion may ask a clarificatory question after the minister's statement, but a general debate does not take place.
- **Statement 3 is correct:** The Calling Attention Motion is an **Indian innovation** in parliamentary procedures, just like the Zero Hour. Both devices were developed within the Indian parliamentary system and are not found in the British parliamentary model from which India largely borrowed its procedures.
- **Statement 4 is correct:** This is the critical distinction between the two. Unlike the **Zero Hour**, which is not mentioned in the Rules of Procedure of either House and is entirely based on convention, the **Calling Attention Motion is explicitly mentioned** in the Rules of Procedure. This gives it a formal procedural basis that the Zero Hour lacks.

Q 122. Ans. C

Explanation:

- **Simple Closure (a) →3:** Under Simple Closure, a member moves that the **matter has been sufficiently discussed** and should now be put to vote. If the presiding officer accepts the motion and the House passes it, the debate is terminated and the matter is immediately put to vote.
- **Closure by Compartments (b) →4:** Under this type, the clauses of a bill or discussion are **grouped into parts or compartments**, and the debate on each

compartment is conducted as a whole. The entire compartment is debated and then voted upon together.

- **Kangaroo Closure (c) →1:** Under Kangaroo Closure, **only important clauses** are taken up for debate and voting. The less important clauses are skipped over entirely, just as a kangaroo leaps over terrain. The selection of which clauses are important is made by the presiding officer.
- **Guillotine Closure (d) →2:** Under Guillotine Closure, when the time allotted for the discussion of a bill is about to expire, the **undiscussed clauses are put to vote along with the discussed ones**. It cuts short the debate abruptly, like the fall of a guillotine, ensuring that the entire bill is disposed of within the allotted time.

Q 123. Ans. A

Explanation:

- **Statement 1 is correct:** Article 12 explicitly includes the **Government and Parliament of India** within the definition of "State" for the purposes of Part III of the Constitution. This ensures that Fundamental Rights are enforceable against the Union executive and legislature.
- **Statement 2 is correct:** Article 12 also explicitly includes **all local or other authorities** within the territory of India or under the control of the Government of India. Local authorities include municipalities, panchayats, district boards, improvement trusts, port trusts, and similar bodies exercising governmental or quasi-governmental functions.
- **Statement 3 is incorrect:** The Supreme Court has held the **opposite** of what Statement 3 claims. In the landmark case of **Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (2002)**, the Court held that even **private bodies** can be treated as "State" under Article 12 if they are financially, functionally, and administratively **dominated and controlled** by the government and are acting as its **instrument or agency**. This was also earlier established through cases involving statutory corporations like LIC, ONGC, and SAIL. Thus, private bodies working as instruments of the State fall **within**, not outside, Article 12.

Q 124. Ans. B

Explanation:

- **Statement 1 is a Gandhian Principle:** Article 40 directs the State to organise **village panchayats** and

endow them with necessary powers to function as units of self-government. This reflects Gandhi's vision of **Gram Swaraj**, where villages would be self-sufficient and self-governing units.

- **Statement 2 is a Gandhian Principle:** Article 43 directs the State to promote **cottage industries** on an individual or cooperative basis in rural areas. This reflects Gandhi's emphasis on rural economic self-sufficiency and decentralised production.
- **Statement 3 is not a Gandhian Principle:** Article 44, which provides for a **Uniform Civil Code**, is classified under **Liberal-Intellectual Principles**, not Gandhian Principles. It reflects the liberal-constitutional vision of a common civil law for all citizens irrespective of religion.
- **Statement 4 is a Gandhian Principle:** Article 48 directs the State to prohibit the slaughter of **cows, calves, and other milch and draught cattle** and to improve their breeds. Gandhi's deep reverence for the cow and his emphasis on cattle protection make this a Gandhian Principle.
- Other Gandhian Principles include Article 46 (promotion of educational and economic interests of SCs, STs and weaker sections), Article 47 (prohibition of intoxicating drinks and drugs), and Article 43B (promotion of cooperative societies, added by the 97th Amendment, 2011).

Q 125. Ans. D

Explanation:

- **Absolute Veto (a) → 2 (Withholding assent):** The Absolute Veto involves the President or executive **withholding assent** to a bill passed by the legislature, thereby preventing it from becoming law. The legislature has no mechanism to override this veto. In India, the President exercises this veto in the case of **private member bills** and government bills where the cabinet has resigned and the new government advises the President not to give assent.
- **Suspensive Veto (b) → 4 (Overridden by ordinary majority):** The Suspensive Veto is exercised when the President **returns a bill** for reconsideration of Parliament. However, if Parliament passes the bill again, with or without amendments, the President is **constitutionally bound to give assent**. Since Parliament can override this veto with a simple (ordinary) majority, it is called a suspensive veto. In India, this veto does **not apply to Money Bills**.
- **Pocket Veto (c) → 1 (Taking no action):** The Pocket Veto involves the President **taking no action** on the bill, neither giving assent nor

returning it for reconsideration. The bill is kept pending indefinitely. In India, the Constitution does not prescribe a time limit within which the President must act on a bill, making the pocket veto constitutionally possible. The President of India has a **bigger pocket than the American President**, as the US Constitution prescribes a 10-day limit.

- **Qualified Veto (d) → 3 (Overridden by higher majority):** The Qualified Veto can be overridden by the legislature but only with a **special or higher majority**, such as a two-thirds majority. This veto exists in the **USA** where the President's veto can be overridden by a two-thirds majority in both Houses of Congress. India does **not have** a qualified veto.

Q 126. Ans. D

Explanation:

- **Pardon (1):** Pardon completely removes both the **sentence and the conviction**, absolving the offender from all punishments, disqualifications, and sentences. It is the most complete form of executive clemency as it wipes out the conviction itself, not just the punishment.
- **Commutation (2):** Commutation involves the **substitution of one form of punishment for a lighter form**. For example, a death sentence may be commuted to rigorous imprisonment, or rigorous imprisonment may be commuted to simple imprisonment.
- **Remission (3):** Remission **reduces the period of the sentence** without changing its character. For example, a sentence of rigorous imprisonment for two years may be remitted to rigorous imprisonment for one year. The nature of the punishment remains the same, only its duration is reduced.
- **Respite (4):** Respite involves awarding a **lesser sentence** in place of the original sentence due to some **special fact**, such as the physical disability of a convict or the pregnancy of a woman offender.
- The fifth pardoning power, **Reprieve**, which is not included in the question, involves a **temporary stay** on the execution of a sentence to allow the convict time to seek pardon or commutation from the President.
- All five powers under **Article 72** extend to sentences awarded by **court-martial** as well, which is a distinction from the Governor's pardoning powers under **Article 161**, which do not extend to court-martial sentences.

Q 127. Ans. B

Explanation:

- The **91st Constitutional Amendment Act, 2003** restricted the size of the Council of Ministers. It provided that the total number of ministers, including the Prime Minister, in the Central Council of Ministers shall **not exceed 15%** of the total strength of the Lok Sabha.
- The same amendment also applied the **15% cap** to state governments, providing that the total number of ministers including the Chief Minister in the state Council of Ministers shall not exceed 15% of the total strength of the Legislative Assembly, subject to a **minimum of 12 ministers**.
- The 91st Amendment also strengthened the **Anti-Defection Law** under the Tenth Schedule by providing that a member disqualified under the Tenth Schedule shall also be disqualified from being appointed as a minister.
- The other options deal with different subjects:
- **86th Amendment Act, 2002:** Made elementary education a Fundamental Right under Article 21A for children between **6 and 14 years** of age.
- **97th Amendment Act, 2011:** Gave constitutional status to **cooperative societies** and added Article 43B as a Directive Principle.
- **103rd Amendment Act, 2019:** Provided **10% reservation** for Economically Weaker Sections (EWS) in government jobs and educational institutions.

Q 128. Ans. B

Explanation:

- **Statement 1 is incorrect:** The Vice-President is **not removed through impeachment**. Impeachment is the process prescribed for the removal of the **President** under Article 61. The Vice-President is removed by a **resolution passed by the Rajya Sabha** with an effective majority (majority of all the then members) and **agreed to by the Lok Sabha**. The Constitution does not specify any grounds for removal and no charges need to be framed, unlike the impeachment process.
- **Statement 2 is correct:** A resolution for the removal of the Vice-President can be introduced **only in the Rajya Sabha** and not in the Lok Sabha. This is consistent with the Vice-President's role as the **ex-officio Chairman of the Rajya Sabha**. A notice of **14 days** must be given before moving such a resolution.
- For comparison, the removal procedures of the President and Vice-President differ significantly:

- The **President** is removed through **impeachment** initiated by either House of Parliament on grounds of **violation of the Constitution**, requiring a **special majority** of two-thirds of the total membership of each House.
- The **Vice-President** is removed by a **resolution** of the Rajya Sabha passed by an **effective majority** and agreed to by the Lok Sabha with a **simple majority**, with **no grounds** specified.

Q 129. Ans. D

Explanation:

- **Statement 1 is correct:** Under **Article 77(1)**, all executive actions of the Government of India are formally expressed to be taken **in the name of the President**. Orders and instruments made in the President's name are authenticated in the manner specified by rules made under Article 77(2), and their validity cannot be questioned in court on the ground that they were not made or executed by the President.
- **Statement 2 is correct:** Under **Article 77(3)**, the President shall make rules for the **more convenient transaction of the business** of the Government of India and for the **allocation among ministers** of such business. These are known as the **Transaction of Business Rules** and form the basis of how governmental functions are distributed among various ministries and departments.
- **Statement 3 is correct:** Under **Article 239**, every Union Territory is administered by the President acting through an **administrator appointed by him**. The administrator may be designated as a Lieutenant Governor, Chief Commissioner, or Administrator depending on the Union Territory. However, Union Territories like **Delhi and Puducherry** have their own elected legislatures and Councils of Ministers, though the administrator still plays a significant constitutional role.

Q 130. Ans. A

Explanation:

- **Statement 1 is correct:** Article 44, which directs the state to secure for all citizens a uniform civil code throughout the territory of India, is a Liberal-Intellectual Principle. It aims at replacing the personal laws of different religious communities with a common set of laws governing all citizens uniformly in matters such as marriage, divorce, inheritance, and adoption.
- **Statement 2 is correct:** Article 45, as amended by the 86th Constitutional Amendment Act of 2002,

directs the state to provide early childhood care and education for all children until they complete the age of six years. This is a Liberal-Intellectual Principle. Prior to this amendment, Article 45 directed the state to provide free and compulsory education for all children up to the age of fourteen years, which was subsequently given the status of a Fundamental Right under Article 21A.

- **Statement 3 is correct:** Article 50, which directs the state to take steps to separate the judiciary from the executive in the public services of the state, is a Liberal-Intellectual Principle. This principle aims at securing the independence of the judiciary from executive interference and ensuring that judicial functions are performed by persons who are trained and equipped for the purpose.
- **Statement 4 is incorrect:** Article 39A, which directs the state to promote equal justice and provide free legal aid to the poor and weaker sections of society, is not a Liberal-Intellectual Principle. It is classified as a Socialistic Principle under the Directive Principles of State Policy. It was inserted by the 42nd Constitutional Amendment Act of 1976 and aims at ensuring that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.
- The Directive Principles of State Policy contained in Part IV of the Constitution can be broadly classified into three categories, namely Socialistic Principles, Gandhian Principles, and Liberal-Intellectual Principles. The Liberal-Intellectual Principles broadly reflect the ideas of liberalism and are inspired by the intellectual tradition of ensuring individual liberty, rule of law, and institutional safeguards within a democratic framework.

Q 131. Ans. B

Explanation:

- **Assertion (A) is correct:** In practice, the President cannot dismiss the Prime Minister as long as he commands the confidence of the Lok Sabha, i.e., enjoys majority support. This is a fundamental principle of the **parliamentary system** of government. The President can ask the PM to prove his majority on the floor of the House, but cannot unilaterally remove him while he holds that majority.
- **Reason (R) is correct:** Under Article 75(2), the Prime Minister holds office **during the pleasure of the President**. This is the formal constitutional position that gives the President the theoretical power to remove the PM.

- **However, R is not the correct explanation of A:** The pleasure doctrine under Article 75(2) actually suggests that the President CAN remove the PM, which is seemingly the opposite of what A states. The correct explanation for A lies in the **parliamentary conventions** governing the relationship between the President and the Prime Minister. In a parliamentary democracy, the President's pleasure in removing the PM is constitutionally constrained by the principle of **collective responsibility** under Article 75(3), which makes the Council of Ministers accountable to the Lok Sabha. As long as the PM commands a majority in the Lok Sabha, the President's pleasure cannot be exercised against him. R states the formal provision; A reflects the parliamentary reality that qualifies it. The two are related but R does not causally explain A.

Q 132. Ans. C

Explanation:

- **Pair 1 is correctly matched:** The oath of office to the **President** is administered by the **Chief Justice of India**. In the absence of the Chief Justice, the senior-most judge of the Supreme Court available performs this function.
- **Pair 2 is correctly matched:** The oath of office to the **Vice-President** is administered by the **President of India**.
- **Pair 3 is correctly matched:** The oath of office and secrecy to the **Prime Minister** is administered by the **President of India**.
- **Pair 4 is incorrectly matched:** The oath of office and secrecy to **Union Ministers** is administered by the **President of India**, not the Prime Minister. The Prime Minister has no constitutional role in administering oaths to ministers. This is consistent with the President's role as the formal constitutional head of the Union executive under Article 75.
- **Governor of a State** → oath administered by the **Chief Justice of the respective High Court**.
- **Chief Minister and State Ministers** → oath administered by the **Governor**.
- **Chief Justice and Judges of the Supreme Court** → oath administered by the **President**.
- **Chief Justice and Judges of High Courts** → oath administered by the **Governor**.

Q 133. Ans. D

Explanation:

- **Pair 1 is correctly matched:** Article 85 empowers the President to summon each House of Parliament

to meet at such time and place as he thinks fit. It also empowers him to prorogue the Houses and dissolve the Lok Sabha. The gap between two sessions of Parliament must not exceed **six months**.

- **Pair 2 is correctly matched:** Article 108 provides for a **joint sitting** of both Houses of Parliament to resolve a deadlock over an ordinary Bill. The President can summon a joint sitting when a Bill is rejected, disagreed upon, or has not been acted upon for more than **six months** by the other House. The joint sitting is presided over by the **Speaker of the Lok Sabha**.
- **Pair 3 is correctly matched:** Article 123 empowers the President to promulgate **Ordinances** when both Houses or either House of Parliament is not in session, provided he is satisfied that circumstances exist which render it necessary to take immediate action. An Ordinance has the same force as an Act of Parliament.
- **Pair 4 is correctly matched:** Article 111 deals with the President's power of **assent to Bills**. When a Bill passed by both Houses is presented to the President, he may give assent, withhold assent, or return it for reconsideration (except in the case of a Money Bill, which cannot be returned). If Parliament passes the Bill again, the President is **bound to give assent**.

Q 134. Ans. B

Explanation:

- Mandamus literally means "we command." It is issued by the Supreme Court or a High Court to a public official, a public body, a corporation, an inferior court, a tribunal, or the government, commanding them to perform a public or statutory duty that they have failed or refused to perform.
- Mandamus cannot be issued against a private individual or body, against the President or Governors, or against a working Chief Justice.
- Habeas Corpus: "To have the body." Issued to produce a person who has been detained before the court to examine the legality of the detention.
- Prohibition: "To forbid." Issued by a higher court to a lower court or tribunal to stop proceedings in a matter outside its jurisdiction.
- Certiorari: "To be certified" or "to be informed." Issued to quash the order of a lower court or tribunal that has acted without or in excess of jurisdiction.
- Quo Warranto: "By what authority or warrant." Issued to enquire into the legality of a person's claim to a public office.

Q 135. Ans. D

Explanation:

- **Statement 1 is incorrect:** The Constitution does **not prescribe any specific procedure** for the selection and appointment of the Prime Minister. Article 75 merely states that the Prime Minister **shall be appointed by the President**, without laying down any procedure for how this selection is to be made. The manner of appointment is governed entirely by **parliamentary conventions**.
- **Statement 2 is incorrect:** The Constitution does not require the Prime Minister to be a member of either House of Parliament **at the time of appointment**. However, Article 75(5) requires that a minister, including the Prime Minister, who is not a member of either House must become a member within **six months** of assuming office. If he fails to do so, he ceases to be the Prime Minister. This provision allowed non-members to be appointed as Prime Minister and then contest for a parliamentary seat afterwards.

Q 136. Ans. C

Explanation:

- **Statement 1 is incorrect:** The Constitution requires the President to be a **citizen of India**, but does **not** specify that it must be citizenship **by birth only**. Any citizen of India, whether by birth, descent, registration, or naturalisation, is eligible. The qualification under Article 58 simply says "citizen of India" without any further restriction on the mode of acquiring citizenship.
- **Statement 2 is correct:** The President must have completed **35 years of age** at the time of election. This is the same minimum age requirement as that for the Vice-President.
- **Statement 3 is correct:** The President must be qualified for election as a member of the **Lok Sabha**. This means he must be registered as an elector in any parliamentary constituency in India and must not be disqualified under any law made by Parliament.
- **Statement 4 is correct:** The President must **not hold any office of profit** under the Union government, any state government, or any local or other authority. However, the following are not deemed to be offices of profit for this purpose: a sitting President or Vice-President, a Governor of any state, and a minister of the Union or any state.

Q 137. Ans. A

Explanation:

- **Assertion (A) is true:** Under Article 9 of the Constitution, if any person voluntarily acquires the citizenship of a foreign state, he shall not be deemed to be a citizen of India. This provision operates automatically, meaning that the moment a citizen of India voluntarily acquires the citizenship of another country, he forfeits his Indian citizenship without any formal order or declaration to that effect. This position is further reinforced by Section 9 of the Citizenship Act, 1955, which provides for the termination of Indian citizenship upon voluntary acquisition of foreign citizenship.
- **Reason (R) is true and is the correct explanation of Assertion (A):** The Indian Constitution does not permit dual citizenship. Unlike federal states such as the United States of America, where a person can simultaneously hold citizenship of the federation as well as of the concerned state, the Indian Constitution provides for single citizenship only. Every Indian is a citizen of India alone and not of any particular state. It is precisely because the Constitution does not permit dual citizenship that a person who voluntarily acquires foreign citizenship automatically loses his Indian citizenship. The prohibition on dual citizenship is thus the direct and logical reason behind the rule stated in the Assertion, making R the correct explanation of A.
- The provision of single citizenship in India was incorporated to promote national integration, ensure equal rights and privileges to all citizens throughout the country, and to prevent any conflict of loyalty that may arise from holding citizenship of more than one country simultaneously.

Q 138. Ans. D

Explanation:

- **Assertion (A) is incorrect:** The ordinance-making power is not a parallel power of legislation. It is a **substitute legislative power** exercised only in emergencies when Parliament is not in session. It is temporary in nature, requires parliamentary approval to continue, and lapses if not approved. A parallel power implies co-equal and simultaneous functioning, which does not describe the ordinance-making power.
- **Reason (R) is correct:** Under Article 123, the President can promulgate an ordinance when **both Houses** of Parliament are not in session or when

either House is not in session. The only situation in which an ordinance cannot be issued is when **both Houses are simultaneously in session**.

Q 139. Ans. B

Explanation:

- **Comptroller and Auditor General (a) → Article 148 (2):** Article 148 provides for the appointment of the **CAG of India** by the President. The CAG is the guardian of the public purse and audits the accounts of both the Union and state governments. He can be removed only in the same manner as a judge of the Supreme Court.
- **Attorney General of India (b) → Article 76 (1):** Article 76 provides for the appointment of the **Attorney General of India** by the President. He is the highest law officer of India and must be qualified to be appointed as a judge of the Supreme Court. He holds office during the pleasure of the President.
- **Chief Election Commissioner (c) → Article 324 (4):** Article 324 vests the superintendence, direction, and control of elections in the **Election Commission** and provides for the appointment of the Chief Election Commissioner by the President. The Chief Election Commissioner can be removed only in the same manner as a judge of the Supreme Court.
- **Chairman of UPSC (d) → Article 316 (3):** Article 316 provides for the appointment of the **Chairman and members of the UPSC** by the President. The Chairman of the UPSC can be removed only by the President on the grounds specified in Article 317, after an inquiry by the Supreme Court.

Q 140. Ans. C

Explanation:

- **Statement 1 is correct:** After the **104th Constitutional Amendment Act, 2019**, which abolished the nomination of Anglo-Indian members, the maximum strength of the Lok Sabha now stands at **550 members**. This comprises not more than **530 members** representing the states and not more than **20 members** representing the Union Territories, both elected directly by the people.
- **Statement 2 is correct:** The Constitution originally contained **Article 331**, which provided for the nomination of **not more than two members** of the **Anglo-Indian community** by the President if he was of the opinion that the community was not adequately represented in the Lok Sabha. This provision was originally meant to last for **ten years** from the commencement of the Constitution but

was extended periodically. It was finally **abolished by the 104th Constitutional Amendment Act, 2019**, which came into force on **25th January 2020**. The same amendment also abolished the reservation of seats for Anglo-Indians in state legislative assemblies under Article 333.

Q 141. Ans. B

Explanation:

- **Simple Majority (a) → Passing an ordinary bill (3):** Simple majority means more than **50% of members present and voting**. It is the most commonly used majority in Parliament and is used for passing ordinary bills, no-confidence motions, finance bills, and most routine business of the House.
- **Absolute Majority (b) –Formation of a government (4):** Absolute majority means more than **50% of the total membership** of the House, irrespective of vacancies or absentees. A party or coalition needs to command this majority to form a stable government. In the Lok Sabha with 543 members, this means at least **272 members**.
- **Effective Majority (c) → Removal of Vice-President (1):** Effective majority means more than **50% of the effective strength** of the House, i.e., total membership minus vacancies. The removal of the Vice-President requires the Rajya Sabha to pass a resolution by effective majority, which is then agreed to by the Lok Sabha.
- **Special Majority under Article 61 (d) → Impeachment of the President (2):** Article 61 requires a resolution passed by **not less than two-thirds of the total membership** of each House for the impeachment of the President. This is distinct from the special majority under Article 368 (constitutional amendments), which requires two-thirds of members present and voting plus absolute majority.

Q 142. Ans. C

Explanation:

- **Assertion (A) is correct:** Article 108 of the Constitution provides for a **joint sitting** of both Houses of Parliament. The President can summon a joint sitting when a deadlock arises over an ordinary bill between the two Houses. A joint sitting is presided over by the **Speaker of the Lok Sabha** and the bill is passed by a simple majority of the total members of both Houses present and voting.
- **Reason (R) is incorrect:** The joint sitting is an extraordinary mechanism to resolve deadlocks

over **ordinary bills**, NOT Money Bills. **Money Bills** are specifically excluded from the joint sitting procedure. In the case of a Money Bill, the Rajya Sabha has no power to reject or amend it. It can only make recommendations, which the Lok Sabha is not bound to accept. If the Rajya Sabha does not return a Money Bill within **14 days**, it is deemed to have been passed by both Houses. Since the Rajya Sabha has no effective power to create a deadlock over a Money Bill, the question of a joint sitting does not arise.

- A joint sitting has been held only **once** in Indian parliamentary history, in **1961**, to resolve a deadlock over the **Dowry Prohibition Bill**.

Q 143. Ans. A

Explanation:

- **Statement 1 is correct:** The representatives of states in the Rajya Sabha are elected by the **elected members of the State Legislative Assemblies**. Nominated members of the state legislature do not participate in this election. Members of the State Legislative Council, where it exists, also do not participate.
- **Statement 2 is correct:** The election is held in accordance with the system of **proportional representation by means of the single transferable vote**. Voting is by secret ballot. This system ensures that the number of seats a party wins in the Rajya Sabha is roughly proportional to its strength in the state legislature.
- **Statement 3 is incorrect:** Seats in the Rajya Sabha are allotted to the states on the basis of their **population**, not geographical area. This is why larger and more populous states like Uttar Pradesh have significantly more seats than smaller states like Sikkim or Mizoram. The allocation of seats to states and Union Territories is given in the **Fourth Schedule** to the Constitution.

Q 144. Ans. A

Explanation:

- **Statement 1 is correct:** Under Article 356, when President's Rule is proclaimed, the President can assume to himself **all or any of the functions** of the state government and all or any of the powers vested in the Governor or any body or authority in the state. The state executive effectively comes under the direct control of the Union.
- **Statement 2 is correct:** The President can declare that the **powers of the state legislature shall be**

exercised by or under the authority of Parliament. During President's Rule, Parliament can pass laws on subjects in the State List for that state. Parliament may also delegate this legislative power to the President or to any other authority specified by him.

- **Statement 3 is incorrect:** The President **cannot** assume the powers vested in or exercisable by a **High Court** during President's Rule. Article 356 explicitly provides that nothing in the proclamation shall authorise the President to assume to himself any powers vested in or exercisable by the High Court. The **constitutional position of the High Court** remains intact during President's Rule, and its functions and jurisdiction are not affected. This safeguard was deliberately included to protect the independence of the judiciary even during emergencies.

Q 145. Ans. B

Explanation:

- Violation of the Constitution is the only ground on which the President of India can be impeached. Article 61 of the Constitution lays down the procedure for impeachment and explicitly states that the President may be removed from office for violation of the Constitution. However, the Constitution does not define what constitutes a violation of the Constitution for this purpose, leaving it to Parliament to determine in each specific case.
- Proven misconduct is not a ground for the impeachment of the President of India. This term has no constitutional basis in the context of presidential impeachment and must not be confused with the procedure for removal of judges of the Supreme Court and High Courts, where proven misbehaviour is one of the grounds for removal.
- Incapacity is not a ground for impeachment of the President. There is no provision in the Constitution for the removal of the President on grounds of physical or mental incapacity. This is a significant gap in the constitutional framework, as unlike the American Constitution, the Indian Constitution does not provide any mechanism for dealing with the incapacity of the President.
- Gross misconduct is also not a constitutionally recognised ground for the impeachment of the President of India. This term does not find any mention in Article 61 or any other provision of the Constitution relating to the office of the President.

- The procedure for impeachment under Article 61 requires that the charge must be preferred by either House of Parliament. The charge can be initiated only when it is signed by not less than one-fourth of the total membership of the House that prefers the charge and a fourteen days notice has been given to the President. The resolution for impeachment must be passed by a majority of not less than two-thirds of the total membership of each House of Parliament. The impeachment process is thus a quasi-judicial proceeding in which both Houses of Parliament participate.

Q 146. Ans. A

Explanation:

- **Statement 1 is correct:** As part of its collective privileges, each House of Parliament has the fundamental right to publish its reports, debates, and proceedings. Concurrently, it possesses the absolute authority to prohibit others from publishing the same to safeguard sensitive parliamentary information or maintain the integrity of its records.
- **Statement 2 is correct:** To ensure free and uninhibited deliberation on matters of grave national importance or security, each House retains the right to exclude strangers (non-members, the press, and visitors) from its galleries. Consequently, it can legitimately hold secret sittings to discuss crucial issues without public scrutiny.
- **Statement 3 is incorrect:** A cornerstone of parliamentary sovereignty and independence is the constitutional immunity from judicial interference in its internal functioning. The Constitution explicitly prohibits the courts from inquiring into the validity of any proceedings in Parliament or its committees on the ground of any alleged irregularity of procedure, thus strictly separating judicial review from internal legislative matters.

Q 147. Ans. D

Explanation:

- The Privileges Committee operates as a semi-judicial parliamentary body whose primary constitutional mandate is to safeguard the freedom, authority, and institutional dignity of the legislature.
- It is strictly tasked with examining every question involving a breach of privilege of the House itself, as well as breaches of privileges concerning individual members or any of its committees, whenever such matters are formally referred to it by the House or the presiding officer.

- Beyond specific parliamentary privileges, the committee's investigative jurisdiction extends to broader cases involving contempt of the House, which encompasses any act or omission that obstructs the House, its members, or its officers in the performance of their official functions.
- Upon concluding a thorough investigation into the facts of a referred case, the committee is responsible for making a definitive determination on the breach and formally recommending appropriate disciplinary actions or punitive measures for the House to adopt.

Q 148. Ans. C

Explanation:

- The concept of procedure established by law as embodied in Article 21 of the Indian Constitution was borrowed from the Japanese Constitution. Article 21 provides that no person shall be deprived of his life or personal liberty except according to procedure established by law. This concept means that the law enacted by the legislature must be followed in letter while depriving a person of his life or personal liberty, but it does not require the courts to examine whether the law itself is fair, just, and reasonable.

Q 149. Ans. B

Explanation:

- A person who is not a member of either House of Parliament can be appointed as a minister.
- However, they can remain a minister for a maximum period of six consecutive months.
- Within this precise timeframe, they must become a member of either the Lok Sabha or the Rajya Sabha, either by election or by nomination.
- If they fail to secure parliamentary membership before this six-month period expires, they automatically cease to be a minister.

Q 150. Ans. D

Explanation:

- **Statement 1 is correct:** The electoral college for the election of the Vice-President consists of both elected and nominated members of both Houses

of Parliament, that is, the Lok Sabha and the Rajya Sabha. This is a significant point of distinction from the presidential election, where only elected members of Parliament form part of the electoral college. The inclusion of nominated members of Parliament in the Vice-Presidential electoral college makes its composition broader in one specific respect compared to the presidential electoral college.

- **Statement 2 is correct:** Unlike the election of the President, where the elected members of the Legislative Assemblies of all states and union territories of Delhi and Puducherry form part of the electoral college, the members of state legislative assemblies do not participate in the election of the Vice-President at all. The Vice-Presidential election is an exclusive parliamentary exercise and no representative from any state legislature is entitled to vote in it. This is a fundamental distinction between the two elections.
- **Statement 3 is correct:** The election of the Vice-President is held in accordance with the system of proportional representation by means of the single transferable vote, and the voting is conducted by secret ballot. This is the same system that is used for the election of the President. Article 66 of the Constitution lays down this procedure to ensure that the Vice-President is elected in a fair and representative manner.
- Article 66 of the Constitution governs the election of the Vice-President. The Vice-President, like the President, is not directly elected by the people but is elected by an indirect method. The office of the Vice-President is the second highest constitutional office in India. The Vice-President acts as the ex-officio Chairman of the Rajya Sabha and also acts as the President when a vacancy arises in the office of the President due to death, resignation, removal, or otherwise.

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